

# THE FEDERATED REPUBLIC

## CONSTITUTION

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*158 Provisions · 20 Articles*  
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# Article I — Individual Sovereignty and Rights

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## *§1.1 Right to Courts and Legal Remedy*

Every person may seek legal remedy for any rights violation before an independent and impartial court. This right is self-executing: where the Legislature has not funded adequate legal aid, courts appoint counsel at public expense. Procedural costs may not be used to make the right to a remedy illusory.

## *§1.2 Individual Sovereignty Floor*

Every person possesses an inviolable sphere of personal sovereignty over their own life, body, and choices. Government authority operates outside this sphere. Where the boundary is disputed, the presumption runs in favor of individual liberty; government bears the burden of demonstrating constitutional authority for any limitation.

## *§1.3 Prohibition of Torture and Cruel Treatment*

Torture and cruel, inhuman, or degrading treatment are absolutely prohibited. No person within the Republic's jurisdiction may be subjected to any such treatment. This right is non-derogable under §1.19.b.

## *§1.4 Prohibition of Slavery and Forced Labor*

Slavery, involuntary servitude, and forced labor are absolutely prohibited. Prison labor authorized by statute and civic obligations lawfully required of citizens by the Legislature — including jury service, military conscription, and civil emergency duties — do not constitute forced labor under this provision. This right is non-derogable under §1.19.b.

## *§1.5 Civil and Political Liberties*

Every person holds the rights of expression, thought, conscience, religion, association, assembly, petition, and movement. Government may regulate the time, place, and manner of expression and assembly for compelling public-order purposes, subject to strict scrutiny and without discriminating on the basis of viewpoint. No government may compel expression or penalize expression through intermediaries it controls or has directed to suppress expression. Freedom of religion protects belief absolutely; it protects practice against limitation except where practice causes direct harm to others. The Legislature establishes by statute any framework for exercising these rights, provided that framework does not burden the right itself.

## *§1.6 Equality and Non-Discrimination*

Every person is equal before the law. Government may not discriminate on the basis of race, ethnicity, sex, sexual orientation, gender identity, religion, national origin, disability, age, or economic status in the provision of any governmental benefit, the imposition of any burden, or the application of any law. Distinctions rationally related to a legitimate governmental purpose that do not turn on these characteristics are permissible. Distinctions that do turn on these characteristics require compelling justification and are subject to strict scrutiny. Age distinctions rationally related to developmental capacity, lifecycle

considerations, or demonstrated actuarial risk are subject to rational basis review rather than strict scrutiny.

#### *§1.7 Bodily Sovereignty and Privacy*

Medical decisions are the province of the individual and their chosen provider. The state may promote public health through information, licensing, and access; it may not compel medical decisions or penalize their exercise. Every person holds the right to privacy in their person, home, communications, and data. Searches, surveillance, and data collection by government require prior independent judicial authorization based on specific, articulable grounds. The Legislature establishes by statute the warrant framework, subject to the requirement of independent judicial oversight. Communications and stored data receive equivalent protection to physical premises. Encryption is a lawful means of protecting private information and may not be prohibited. No government may impose civil or criminal liability on any person solely for receiving, assisting access to, or providing information about medical care that was lawful where received.

#### *§1.8 Property and Security of the Home*

Every person holds the right to own property and to security in their home. The state may take private property for public use only upon payment of just compensation determined by independent process, not by the taking authority. The home may not be entered without the occupant's consent or prior independent judicial authorization.

#### *§1.9 Democratic Participation and Family*

Every citizen holds the right to vote, stand for office, and participate in the democratic processes of the Republic, subject to the eligibility requirements established in this constitution. Every person holds the right to marry and found a family, free from governmental discrimination on the basis of the characteristics listed in §1.6. Children born within and outside of formal partnership hold equal legal status.

#### *§1.10 Right to Bear Arms*

Every person holds the right to keep and bear arms for lawful purposes including self-defense. States may establish licensing and safety frameworks. No government may enact a categorical prohibition on the civilian ownership of arms. The Legislature and States may regulate the type, transfer, and carry of arms subject to the requirement that lawful ownership for self-defense remain available.

#### *§1.11 Habeas Corpus*

Every person detained by public authority has the right to challenge that detention before an independent and impartial court. The detaining authority must produce the person and justify the detention within the period established by statute, not to exceed 72 hours. No court may decline to hear a habeas corpus application. This right is non-derogable under §1.19.b.

#### *§1.12 Rights of the Accused and Fair Trial*

Every person accused of a criminal offense holds: the right to be informed promptly of the charges; the right to counsel of their choosing, or to competent, adequately resourced counsel appointed at public expense where they cannot afford representation; the right to adequate time and means to prepare a defense; the right to examine witnesses; the right to silence without adverse inference; and the right to a speedy trial. No person may be penalized — by sentence enhancement or otherwise — solely for exercising the right to trial. Bail may not be used as punishment; its purpose is ensuring appearance and public safety, calibrated to individual circumstances. The Legislature establishes by statute the procedural framework for criminal proceedings, subject to the requirements of this provision. Where any systematic or automated methodology is used to generate evidence, the accused has the right to examine that methodology in full.

#### **§1.13 *Right to a Public Trial***

Every person accused of a criminal offense has the right to a public trial before an independent and impartial court. Proceedings may be held in camera only to the minimum extent necessary to protect a compelling interest identified in advance by the court; the existence of any proceeding may not be concealed. This right is non-derogable under §1.19.b.

#### **§1.14 *Freedom from Retroactive Criminal Law***

No person may be convicted of an act that was not a criminal offense when committed, or subjected to a penalty greater than that applicable at the time of the offense. No criminal law may be applied retroactively to the disadvantage of the accused. This right is non-derogable under §1.19.b.

#### **§1.15 *Double Jeopardy***

No person may be tried or punished twice for the same offense following a final acquittal or conviction. Same offense means the same conduct regardless of how it is labeled or charged; the protection applies to any charge that does not require proof of an element distinct from those required for the original charge. The Legislature defines by statute the scope of this protection above this constitutional floor, including its application across jurisdictions.

#### **§1.16 *Social Assistance Floor***

Every Inhabitant is entitled to access the Republic's social state systems under Article XII. No government may exclude any person from social assistance on the basis of the characteristics listed in §1.6. The Legislature establishes by statute the content and administration of social assistance, subject to the adequacy standards certified under §12.1. The Legislature must take reasonable measures within available resources toward the progressive fulfilment of this right; no reduction in the adequacy standard below the established level is constitutionally valid absent a certified fiscal emergency under §12.2.

#### **§1.17 *Education***

Every child has the right to education adequate to enable full civic participation. The state must ensure this education is available and accessible. Parents hold the right to direct the education of their children within the framework of public educational standards. The Legislature establishes by statute the content and

funding of public education, subject to the adequacy standard established by statute. The Legislature must take reasonable measures within available resources toward the progressive fulfilment of this right; no reduction in the adequacy standard below the established level is constitutionally valid absent a certified fiscal emergency under §12.2.

#### **§1.18 *Environmental Obligations***

Government holds an obligation not to cause environmental harm to persons within its jurisdiction through its own actions or through the actions of those it licenses. The Legislature establishes by statute the framework for environmental protection, and may not enact statutes that systematically permit environmental harm to defined communities. This provision does not require the achievement of any particular environmental outcome; it requires genuine governmental action toward environmental protection proportionate to identified harms.

#### **§1.19 *Emergency Derogation***

No emergency — however severe — suspends the Individual Sovereignty Floor in full. Temporary derogation of certain rights is permitted only under the strict conditions of this section; the rights enumerated in §1.19.b may not be derogated. The three Monitors continue to operate with full constitutional authority throughout any emergency — they cannot be suspended or have their mandate reduced by emergency declaration. Emergency derogation of Article I rights requires a declaration specifying the nature of the emergency, which rights are limited, the geographic scope, and the duration; blanket declarations are constitutionally invalid. The declaration is published to the NRS immediately.

##### **§1.19.b *Non-Derogable Rights***

These six rights are absolute: the prohibition on torture (§1.3); slavery (§1.4); habeas corpus (§1.11); the right to a public trial (§1.13); no retroactive punishment (§1.14); and non-refoulement (§1.21). No emergency declaration, executive order, or legislative act may derogate any of these rights. No emergency measure, regardless of its stated purpose, may be applied in a discriminatory manner on the basis of race, ethnicity, religion, or national origin; any such application is constitutionally void.

##### **§1.19.e *Emergency Declaration Lifecycle***

Emergency measures lapse automatically at the expiry of the Declaration. The Legislature may, before a Declaration expires, extend it for one additional period not to exceed 60 days by 2/3 of both chambers in a concurrent vote; the extension is published immediately to the NRS and no further extension is available under this provision. Judicial review of any emergency measure is available to any citizen at any time, and courts may rule during the emergency that a specific measure is unconstitutional. No emergency measure may be made permanent by legislative act; any measure not re-enacted through the ordinary legislative process lapses automatically at the expiry of the Declaration. The Legislature may not re-declare an emergency measure within 60 days of its expiry. A new emergency declaration covering substantially the same geographic scope and affecting substantially the same rights as a declaration that expired within 60 days is subject to the same bar, regardless of how the new emergency is labeled; the EM publishes an assessment of whether any new declaration constitutes a

re-labeled continuation of the prior emergency within 14 days of its issuance. After 60 days, re-declaration requires a 2/3 majority of both chambers certifying continued necessity.

**§1.20 *Right to Seek Asylum***

Every person who reaches the Republic's jurisdiction has the right to claim asylum and have that claim determined by an independent process under §6.3. The manner of entry does not affect this right. An asylum seeker is an Inhabitant of the Republic from the date of claim and holds all rights in this Article.

**§1.21 *Non-Refoulement***

No person within the Republic's jurisdiction may be returned, expelled, or extradited to any territory where they face genuine risk of persecution, torture, or deprivation of life. This protection applies regardless of the person's status, conduct, or the nature of the receiving territory's government. This right is non-derogable under §1.19.b.

## Article II — The Dual Executive

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### §2.1 *The Legat Consul — Domain and Term*

To hold the office of Legat Consul, a person must have been a citizen for at least 7 years at the time of taking office and must hold no federal felony conviction. No other eligibility requirement applies. The Legat Consul holds enumerated authority over: military command and force employment; foreign affairs, treaty negotiation, recognition of foreign governments, and the receipt of foreign delegations; intelligence; trade agreements subject to §2.4; and compact relationships with recognized indigenous nations under Article XVI; and appointments within the Legat Consul's domain. Where the domain of a proposed action is disputed, the Council of Ministers under §2.14 is the first forum; pending resolution, each executive continues only those functions clearly within their established domain; the specific action giving rise to the dispute is suspended pending SC determination. During active military operations, the Legat Consul's domain governs operational decisions; either executive may petition the SC for an expedited domain determination. The Legat Consul serves a single non-renewable term of six years. Upon expiration of the term, all authority transfers immediately to the incoming Legat Consul. The outgoing Legat Consul retains no access to classified information, government systems, or official functions beyond the time of transfer.

### §2.2 *Military Authorization Framework*

The Legat Consul may use military force in immediate response to an active or imminent attack on Republic territory, citizens abroad, or treaty allies. Beyond immediate response, all use of military force requires legislative authorization. The Legat Consul must notify both chambers and the Civic Consul promptly upon any use of force, not to exceed 24 hours; the Legislature may define a shorter period by statute. Legislative authorization expires unless affirmatively renewed at intervals the Legislature defines by statute; the constitutional default on expiry is cessation of all operations — the burden is always on authorization, never on termination. Military expenditure is governed by §14.2. All military operations must state and be consistent with an authorized purpose under §14.1.

### §2.3 *Consular Intelligence and Veto*

The Legat Consul directs foreign intelligence. No intelligence operation may be conducted against Republic citizens within Republic territory on the Legat Consul's authority; such operations require independent judicial authorization.

#### §2.3.a *Legat Consul Legislative Veto*

The Legat Consul may veto legislation that raises a genuine constitutional concern within the Legat Consul's security domain — military operations, intelligence, treaty obligations, or border security — by returning the bill within 10 business days of final passage with a written statement of grounds, published to the NRS. A general or speculative security connection is insufficient. If the Legat Consul neither acts nor objects within 10 business days of final passage, the bill proceeds to enactment. The Legat Consul's veto may be used only once on any bill; a bill reintroduced and passed by both chambers in a subsequent session proceeds without Legat Consul interference. Either Speaker may



petition the SC for an expedited domain determination of any disputed veto; the SC must rule within 14 days of such petition; where the SC does not rule within 14 days, the veto is void and the bill proceeds to ordinary enactment without Legat Consul assent. Under §9.1, either Speaker may request an EM assessment of the domain question, which the SC may consider as expert evidence. Where the SC confirms the veto falls outside the Legat Consul's defined domain, the veto is void and the bill proceeds to ordinary enactment without Legat Consul assent. Where the SC confirms the veto is within domain, the Senate may override by 2/3 supermajority; where no override occurs, the bill lapses for that session.

#### *§2.4 Legat Consul International Agreements*

The Legat Consul negotiates and concludes treaties and trade agreements. Treaties are subject to ratification under §3.6. Trade agreements are subject to legislative approval under §3.6. During negotiation of any trade agreement, the Legat Consul must consult the Civic Consul on its domestic implications; the Civic Consul's response is published to the NRS. The Legat Consul nominates senior domain officers — Director of Intelligence, Director of Foreign Affairs, Director of Defense — from a pool of qualified candidates maintained by the Elections Panel under §9.12. The Legislature defines qualifications and confirmation procedures for each office by statute; acting appointments may be made pending confirmation for the period and under the conditions the Legislature defines.

#### *§2.5 The Civic Consul — Domain and Term*

The Civic Consul holds residual executive authority over all functions not enumerated to the Legat Consul. To hold the office of Civic Consul, a person must have been a citizen for at least 7 years at the time of taking office and must hold no federal felony conviction. No other eligibility requirement applies. The Civic Consul serves at the confidence of the Assembly, subject to removal under §2.6. No person may serve more than 8 years in total as Civic Consul across all periods of service; this limit is cumulative and permanent regardless of interruption. The Civic Consul's domestic authority includes: all domestic policy and regulatory frameworks; the annual budget, which the Civic Consul prepares and submits to the Assembly for passage; the civil service; and administration of the social state under Article XII. The Civic Consul may declare a domestic emergency in response to natural disaster, public health crisis, or infrastructure failure, subject to the constraints of Article I and renewable Assembly approval at intervals defined by statute; in the absence of a statutory interval, the constitutional default is 30 days. The Legat Consul has no role in domestic emergencies. The Civic Consul has the right to be informed on matters within the Legat Consul's domain that bear on domestic interests or create domestic fiscal obligations. No classification or domain assertion may be used to withhold such information from the Civic Consul. The Legat Consul shall consult the Civic Consul on compact negotiations under Article XVI; the Civic Consul's response is advisory. Where the Civic Consul is temporarily unable to exercise authority, the Civic Consul's designated Acting Civic Consul serves with authority limited to maintaining existing policy and emergency functions. Acting status ends when the Civic Consul resumes their duties or a new Civic Consul is confirmed by the Assembly.



## **§2.6 *Constructive Vote of No Confidence***

The Civic Consul is accountable to the Assembly. The Assembly may remove the Civic Consul only through a constructive vote of no confidence: a single vote that simultaneously removes the sitting Civic Consul and installs a named replacement, by 60 percent of full seated Assembly membership. A confidence vote that does not name and elect a successor has no constitutional effect. The Civic Consul must be and remain a serving member of the Assembly throughout their tenure; removal or resignation as Civic Consul does not affect Assembly membership, and a former Civic Consul who remains a member of the Assembly reverts to that role. The Civic Consul is subject to all Assembly membership rules, including term limits and the cooling-off period under §3.2.

### **§2.6.a *Government Formation***

The Assembly elects the Civic Consul by absolute majority within the period defined by statute following any general election or vacancy; where no statutory period has been established, the constitutional default is 21 days. If the Assembly does not elect a Civic Consul within that period, the Civic Consul designates an Acting Civic Consul from the confirmed ministers. Where no ministers have been confirmed, the designation falls to a serving Assembly member. The designation is published to the NRS. The Senate may, by 2/3 supermajority, designate a serving Assembly member as Civic Consul if the Assembly has failed to elect one within the statutory period; Assembly election of a Civic Consul by absolute majority terminates any Senate designation. Where no Civic Consul has been elected and the Senate has not designated one within 45 days of the Assembly failing to elect, the Legat Consul nominates a serving Assembly member as Civic Consul within 21 days, published to the NRS; the Senate confirms by simple majority within 21 days of nomination; the confirmed appointee holds full Civic Consul authority and is subject to removal under §2.6. Where the Legat Consul does not nominate within 21 days or the Senate does not confirm within 21 days of nomination, the longest-serving Assembly member who otherwise meets the requirements for Civic Consul assumes the role by constitutional operation, published to the NRS; this appointee holds full Civic Consul authority and is subject to removal under §2.6.

### **§2.7 *Civic Consul Legislative Instruments***

Where the Civic Consul withholds assent from a bill passed by both chambers, the Civic Consul exercises a suspensive veto by returning the bill to the Legislature within 10 business days of final passage with a written statement of objection specifying constitutional, fiscal, or operational grounds, published to the NRS. The bill is tabled for one month from the date of return regardless of any change in the office of Civic Consul. The Senate may override the suspensive veto by 2/3 supermajority during that month; a successfully overridden bill takes effect without Civic Consul assent. Where no Senate override occurs within that month, the bill lapses for that session. The suspensive veto may be used only once on any bill within a session; a bill reintroduced and passed again by both chambers in the same session is not subject to the suspensive veto and returns to the Civic Consul with only the fiscal veto, approval, or automatic enactment by silence available. The Civic Consul may also object on specific solvency grounds — the bill would cause or materially worsen a structural deficit; the Assembly may override a solvency objection by simple majority. If the Civic Consul neither

signs nor objects within 10 business days of final passage, the bill is enacted. Silence is not a veto. The suspensive veto may not be used on the annual budget, bills implementing a constitutional obligation, or emergency legislation. Both executives review legislation concurrently from the date of final passage.

#### **§2.8 *Duty of Refusal***

No civil servant, military member, or person acting under direct federal authorization in the performance of a specific federal function may comply with an order from either executive that would require violation of any constitutional provision or statute. Refusal of such an order creates no civil or criminal liability and is no basis for dismissal or penalty. The refusing person may report the order to the EM, which may investigate and publish findings to the NRS. Any penalty imposed for a lawful refusal is itself a constitutional breach. The Legislature establishes by statute the framework for protecting and supporting civil servants who exercise this duty.

#### **§2.9 *Legat Consul Succession and Incapacity***

Full succession activates on the Legat Consul's death, resignation, removal, or certified permanent incapacity. The Senate Speaker holds the office of Legat Consul from the moment the triggering event is published to the NRS — no active assumption is required or permitted; the transfer is instantaneous and self-executing by constitutional operation. Where the Senate Speaker is simultaneously unable to serve, the most senior Senator by continuous Senate service holds the office from that moment; where two or more Senators have equal continuous service, the oldest by age holds the office. The Legislature or Senate may by statute or standing order designate a further succession line beyond this constitutional floor. Upon NRS publication of any triggering event, the military chain of command recognizes the constitutional transfer immediately; any order issued in the name of the prior Legat Consul after that moment is constitutionally void. A successor serves the remainder of the current Legat Consul's term; a successor who serves any portion of a predecessor's term must sit out one full term before standing for election as Legat Consul; after the cooling-off period the former successor may stand for and serve a full elected term. Where the Legat Consul is temporarily unable to exercise authority, a majority of the JMC assesses capacity and, on joint assessment published to the NRS, Acting Legat Consul authority transfers to the Senate Speaker without vacating the Speaker's Senate seat by constitutional operation from that moment. Acting authority ends when the Legat Consul publishes a restoration declaration to the NRS.

#### **§2.10 *Executive Transparency***

Both executives must publish all official acts — orders, certifications, vetoes, objections, determinations, and refusals to certify — to the NRS within the period defined by statute. No executive may classify, delay, or suppress publication of an act this constitution requires to be published. Acts of non-consent — refusals to certify, objections, escalation denials, and declinations to act within a constitutional mandate — carry the same attribution and publication requirements as acts of authority. An executive who declines certification, withholds approval, or refuses to perform a constitutionally required function is constitutionally responsible for that act to the same degree as an executive who

issues an order. The NRS record of every executive act of non-consent is permanent, attributed to the individual officer, and may not be reclassified or removed. A late-published act is not void, but late publication is a constitutional compliance breach.

#### **§2.11 *Emergency Governance***

Where the Assembly is unable to function for an extended period — as defined by statute; in the absence of a statutory definition, the constitutional floor is 30 consecutive days during which the Assembly cannot achieve quorum — the Senate may assume joint emergency legislative authority for three functions only: election administration, social state funding continuity, and active national security obligations. Where the Elections Panel is unable to function, the EM and LM jointly certify that incapacity and publish it to the NRS; from that moment the Senate administers federal elections under this provision until the Elections Panel is restored and the restoration is published to the NRS. All Senate emergency actions require co-signature of the Acting Civic Consul and are published to the NRS. This authority expires automatically when a new Assembly is seated. In catastrophic circumstances where the Legislature cannot convene, expedited activation of the Senate's emergency legislative authority under this section is available on joint certification by the Acting Civic Consul and the Chief Justice — or, where the Chief Justice is unavailable, the most senior Associate Justice by length of continuous SC service — published to the NRS.

#### **§2.12 *Clemency***

Each executive holds clemency authority within their own domain only. Consular clemency covers military law and national security offenses. Civic Consul clemency covers domestic offenses. Neither may pardon offenses within the other's domain. Self-clemency is absolutely prohibited for all constitutional officers; an attempted self-clemency is void and itself a constitutional violation. No clemency may be granted for offenses in which the granting executive was a participant or direct beneficiary. Before any grant, the EM publishes a factual background report to the NRS. A clemency grant made before the EM report is published is void and of no legal effect. Every petition, report, grant, and declination is published permanently to the NRS. Every grant is subject to cross-chamber transparency review. Group amnesty requires legislative action; no executive may grant group amnesty.

#### **§2.13 *Consular Removal***

The Legat Consul may be removed on two independent tracks. Under the legislative track, 2/3 of both chambers in a concurrent vote on grounds of constitutional breach, demonstrated permanent incapacity, or conviction for a disqualifying offense. Either chamber may request a JMC assessment as part of the proceedings; any such assessment is published to the NRS. Under the popular track, a Senate majority may refer the question to a national recall referendum administered within the period defined by statute. The Legat Consul is removed if the referendum achieves 60% of votes cast under §13.3 with a minimum 55% citizen participation. A failed referendum may not be re-initiated within the same Legat Consul's term. The Senate Speaker holds Acting Consular Authority from the moment of Senate referral published to the NRS — no active

assumption is required or permitted. The military compliance obligations established in §2.9 apply to this transfer.

#### **§2.14 *Council of Ministers***

The Council of Ministers comprises the Legat Consul's domain officers and the Civic Consul's ministers meeting jointly as a standing cross-executive coordination body. The Council is the primary forum for matters that cross executive domains. The Council makes recommendations and coordinates positions; it does not exercise executive authority. A summary record of each session is published to the NRS within the period defined by statute. The existence and general subject of each session may not be classified. Operational procedures are defined by statute.

##### **§2.14.a *Cross-Domain Emergency Lead***

In a cross-domain emergency requiring unified operational authority, either executive may propose a temporary operational lead designation. Concurrence of both executives makes it effective and is published to the NRS. Where the executives cannot agree, either may petition the SC for expedited resolution under §4.5. A lead designation assigns operational coordination only and does not affect either executive's constitutional domain authority.

#### **§2.16 *Federal Prosecution***

The Civic Consul is responsible for the enforcement of federal law and sets general prosecution policy. The Legislature shall by statute establish a Federal Prosecution Service independent in the exercise of individual prosecutorial decisions. The Civic Consul may issue directions to the Service on general prosecution policy. Any direction concerning a specific prosecution must be in writing and published to the NRS simultaneously with issuance. The Legislature may not reduce the Service's appropriation below the prior year's level without a 2/3 vote of both chambers.

## Article III — The Legislature

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### §3.1 *The Legislature*

The Legislature comprises two chambers: the Assembly and the Senate. All legislation originates in the Assembly. The Senate reviews, may amend within the subject matter of the bill, and must act on every Assembly-passed bill within the period defined by statute — inaction triggers automatic deemed approval. In the absence of a statutory period, the Senate must act within 90 days of receipt. Neither chamber may indefinitely delay business assigned to it by this constitution.

### §3.2 *The Assembly*

The Assembly is the proportionally elected chamber. Both States and Territories send voting members. Seats are allocated by the Webster method based on population, with a minimum of one seat per State and Territory. The constituency divisor is established and may be adjusted by statute, subject to the minimum-seat guarantee. The census, conducted every ten years by a statutory independent agency, is the basis for reapportionment. The LM audits the census and allocation process. The Assembly Speaker is elected by the Assembly from its own members by absolute majority. Quorum is a majority of full seated membership. The Assembly establishes its own internal procedures. Members serve two-year terms. No member may serve more than six consecutive terms without sitting out one full electoral cycle; no cumulative lifetime restriction applies after the cooling-off period. All member financial interests are disclosed to the EM and published to the NRS. Mid-term vacancies in Assembly seats are filled by special election administered by the Elections Panel; the Legislature establishes timing and procedures by statute, ensuring no seat remains vacant within the period defined by statute, not to exceed 90 days. The Assembly may expel a member by 2/3 vote of full seated membership; expulsion is published to the NRS and is effective immediately.

### §3.3 *Electoral Districts*

States draw their own Assembly district maps subject to five criteria: population equality within reasonable tolerance; geographic contiguity; compliance with §1.6 non-discrimination; no intentional dilution of minority voting power; and reasonable compactness. Maps may not be drawn using voter political affiliation data, voting history data, incumbent residence, or racial composition as primary criteria. The LM reviews all maps for compliance and publishes findings to the NRS. Where a map fails, the Elections Panel draws an interim compliant map that takes effect at the next election and is retired when the State submits a compliant map. Territorial districts are drawn by the Elections Panel under the same criteria. Any citizen, State government, or parliamentary minority may challenge a map before the SC.

### §3.4 *Legislative Standards*

Every bill must address a single, clearly defined subject. Any member or approval body in the legislative process may request an EM assessment of single-subject compliance, published to the NRS. The full text of every bill must be published to the NRS for a minimum period defined by statute before any final

passage vote; a substantially amended bill resets the clock. The Legislature must sit for a minimum number of days per year defined by statute; emergency sessions may be called by the Civic Consul or by petition of 1/3 of either chamber. Members must disclose all financial interests to the EM. The Legislature must establish a joint ethics committee with authority to sanction and refer members; removal requires 2/3 of the relevant chamber; under §9.1, the chamber may request an EM assessment to inform the proceeding.

### **§3.5** *The Senate*

The Senate comprises two senators per State regardless of population, elected for six-year staggered terms. At the first Senate seating, senators are assigned to three approximately equal cohorts by public lot: the first cohort serves an initial term of two years, the second four years, the third six years; thereafter all Senate terms are six years. The lot is conducted by the Elections Panel and published to the NRS before the first senators take the constitutional oath. No senator may serve more than two consecutive terms without sitting out one full term; no cumulative lifetime restriction applies after the cooling-off period. The Senate Speaker is elected by senators and may not serve more than two consecutive full Senate terms as Speaker without sitting out one full Senate term. The Senate defines its own internal procedures. The Senate may expel a member by 2/3 vote of full seated membership; expulsion is published to the NRS and is effective immediately. A State may establish by its own law a recall mechanism for its senators; where a senator is recalled under State law the seat is treated as vacant under this Constitution. The Senate holds exclusive authority over: judicial confirmation; treaty ratification by 2/3 of full seated membership; and, in the absence of a functioning Elections Panel, administration of the consular election. The Senate may not initiate legislation; all bills originate in the Assembly.

### **§3.6** *Treaty and Trade Agreement Ratification*

Treaty and compact agreement ratification requires 2/3 of the full seated Senate. Trade agreements concluded by the Legat Consul take effect upon approval by simple majority of both chambers; neither chamber may amend the terms of a concluded agreement. Where a treaty fails ratification, standalone domestic provisions may be transmitted to the Assembly as ordinary legislation unless the treaty is bilateral and its obligations are interdependent, in which case it must be renegotiated or abandoned in full. The Legat Consul initiates treaty withdrawal by published NRS notice. For general treaties, the Senate may block withdrawal by simple majority within the notice period; if the Senate does not act, withdrawal takes effect. For mutual defense treaties, the Senate must affirmatively confirm withdrawal; if the Senate does not confirm, the treaty remains in force. Indigenous treaties under Article XVI may not be unilaterally withdrawn.

#### **§3.6.a** *Classification and Dispute Resolution*

Where the Senate disputes the Legat Consul's classification of an international instrument as a trade agreement, the instrument is treated as a treaty pending resolution. Either party may petition the SC for expedited classification determination; the SC must rule within the period defined by statute.



### **§3.7 *Legislative Process and Passage***

Bills pass by absolute majority of the full seated membership of both chambers. Higher thresholds apply to constitutional amendments, veto overrides, removal proceedings, and other matters specified in this constitution. The Speaker of each chamber must publish the final text of every enacted law to the NRS within the period defined by statute. All prior versions, committee reports, Monitor findings, and veto records are indexed alongside the enacted text. Where the constitution requires the Legislature to enact specific legislation and the Legislature fails to do so, the LM publishes a non-compliance finding; the mandate becomes justiciable in the SC; and, for mandates whose non-fulfilment directly impairs the exercise of a right guaranteed in Article I, affected parties may bring direct constitutional claims.

### **§3.8 *Legislative Oversight***

All three Monitors have full access to legislative records, committee deliberations, voting records, and draft legislation; the Legislature may not withhold records from the Monitors. The LM publishes a constitutional compliance analysis of any enacted law during the legislative review period; members may request LM analysis of any bill at any stage; the LM does not initiate pre-enactment review on its own motion. Standing committees are mandated for constitutionally assigned functions and may not be abolished while they hold a constitutional mandate. Legislative privilege protects members from civil proceedings arising from acts performed in their legislative capacity but does not extend to criminal conduct or acts the EM has assessed as constitutional breaches.

### **§3.9 *Independent Statutory Agencies***

The Legislature may establish independent agencies operating outside the authority of both executives. Where this Constitution assigns a function to an independent agency, the Legislature must establish it. Directors of constitutionally mandated independent agencies serve fixed terms defined by statute and are removable for cause only; cause must relate to conduct, competence, or a disqualifying offense under §3.12 and may not include policy disagreement with the Legislature or either executive. The appointment process and oversight mechanism for each agency are established by statute in a manner consistent with this independence protection.

### **§3.10 *Impeachment***

The Assembly may impeach officers serving in the Legat Consular domain and inferior court judges. The Legat Consul is removed exclusively under §2.13; the Civic Consul under §2.6; SC justices under §4.3.b; legislative members by their own chamber. A 1/3 Assembly minority may open an inquiry; full impeachment requires absolute majority of full seated membership. Articles of Impeachment are published permanently to the NRS and transmitted immediately to the Senate. The subject official continues in office pending the Senate trial, relieved of executive functions from the date of Assembly passage; the applicable succession and acting mechanisms under this constitution govern the exercise of any suspended functions. The Senate trial is public and recorded on the NRS. Conviction and removal requires 2/3 of full seated Senate membership; the Senate may additionally bar the convicted from future federal office by simple



majority. Acquittal is final on the same conduct. Criminal liability remains separately pursuable.

### **§3.11 *Inviolability of Electoral Mandates***

Elected constitutional officers serve their constitutionally defined terms. No act of the Legislature, either executive, any court, any Monitor, or any administrative body may shorten, suspend, or terminate an elected mandate. The only permitted exceptions are: expulsion by the relevant chamber under §3.2 or §3.5; recall under a mechanism established by State law as recognized in §3.5; and impeachment and removal under §3.10. Any mechanism enabling the people themselves to shorten an elected mandate not already provided in this Constitution requires a constitutional amendment under Article XVII and may not be established by ordinary statute.

### **§3.12 *Disqualifying Offense***

A disqualifying offense, wherever that term appears in this Constitution, means a conviction for a federal felony under the laws of the Republic. No state-level or foreign conviction constitutes a disqualifying offense for constitutional purposes. A pardon granted under §2.12 does not restore constitutional eligibility unless the pardoning instrument expressly states that eligibility is restored and the EM publishes to the NRS that the pardoning instrument expressly states eligibility is restored. Where a conviction is under appeal at the time a relevant constitutional determination is made, the conviction stands for constitutional purposes unless and until it is reversed by a court of competent jurisdiction.

### **§3.13 *Continuity of Constitutionally Mandated Offices***

For every office established by this Constitution with a fixed term, the confirmed or elected successor's term begins at the precise moment the incumbent's term concludes — no gap exists between the end of one term and the commencement of the next. The selection and confirmation processes for each such office must be initiated and completed with sufficient lead time to ensure seamless succession before the incumbent's term ends. Any person serving in an acting capacity for a constitutionally mandated office during an unexpected vacancy must be otherwise eligible for that office — possessing all substantive qualifications for the role — with the sole exception of not having completed the applicable confirmation or election process. The acting mechanism for each office is defined in the provisions governing that office.

### **§3.14 *Federal Legislative Competence***

The Legislature holds general authority to legislate for the peace, order, and good governance of the Republic. It may not enact legislation that destroys the capacity of States to govern themselves as self-governing communities. Where federal law and State law conflict, federal law prevails to the extent of the conflict. The Legislature may set minimum standards that States must meet but may not direct State institutions as instruments of federal administration. Where this Constitution directs that a function, standard, procedure, or framework be established, defined, or regulated, that obligation is fulfilled by statute unless this Constitution specifies otherwise. No executive or administrative act may substitute for legislation where this Constitution requires statutory action.

### **§3.15** *Delegation of Authority*

The Legislature may by statute delegate defined authorities within its legislative competence to the Legat Consul, the Civic Consul, or independent agencies established under §3.9. Any delegation must specify the exact scope of authority delegated, the conditions on its exercise, and a maximum duration not to exceed the term of the Legislature that enacted it. The Legislature may rescind any delegation by simple majority of both chambers at any time; no recipient of delegated authority may obstruct or condition rescission. No delegation creates a permanent transfer of legislative competence. Every exercise of delegated authority is published to the NRS with attribution to both the legislative grant and the recipient's act. The EM audits the exercise of all delegated executive authority annually and publishes findings to the NRS.

## Article IV — The Judicial Architecture

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### §4.1 *Court Structure*

The Republic's judiciary operates at three levels: district courts, appellate courts, and the Supreme Court. The Legislature may establish, abolish, and define the jurisdiction of inferior courts by statute. The abolition of an inferior court does not take effect as to any judge currently serving on that court until their term expires or they are removed for cause under §4.2; judges whose courts are abolished may be reassigned to other inferior courts by the Civic Consul with Senate confirmation at 2/3. States may maintain specialized court structures; any constitutional question arising in any proceeding may be referred to the SC. Courts act only on cases brought by a party with a concrete, articulable injury. Judges may not issue advisory opinions. Organizational standing is available where at least one member would individually have standing and the claim is germane to the organization's established constitutional purpose.

### §4.2 *Judicial Appointments and Independence*

Any person meeting the basic legal qualifications defined by statute may apply to the Elections Panel; the Elections Panel enters qualifying applicants into the Judicial Pool; the JM's ongoing audit encompasses the Judicial Pool. Exceptions to pool eligibility — including persons currently holding government positions, those with disqualifying financial interests, and those removed from a court within a recent period — are defined by statute. The Civic Consul nominates inferior court judges from the Judicial Pool maintained by the Elections Panel under §9.12. The Civic Consul must nominate within the period defined by statute following a vacancy, not to exceed 90 days where no statutory period has been defined. The Senate confirms by a 2/3 supermajority. Inferior court judges serve a single non-renewable term of 12 years and may be removed only for cause. Cause for judicial removal must relate to conduct, competence, or a disqualifying offense under §3.12; policy disagreement with judicial decisions does not constitute cause, consistent with the principle established in §3.9. The Legislature may establish a mandatory retirement age by statute, not below 70. Judicial removal occurs through three tracks: legislative removal by 2/3 of both chambers on grounds of constitutional breach or demonstrated incapacity; under §9.1, either chamber may request an EM assessment to inform the proceeding; judicial discipline through a process established by statute under SC oversight; or criminal conviction for a disqualifying offense. No public official may direct, threaten, or seek to influence a judge's decision in any pending matter. Judicial compensation may not be reduced during a judge's term.

### §4.3 *The Supreme Court*

The Supreme Court consists initially of nine justices organized into three staggered classes, each serving a single non-renewable 12-year term. The Legislature may increase the number of justices by statute requiring 2/3 of both chambers; any seat added must be filled within 18 months from the statute's effective date or expires by operation of law. The Legislature may decrease the number only by 2/3 of both chambers, effective through natural attrition only, never by removing a sitting justice. The Court may not fall below three justices. Where the Court is equally divided, the challenged ruling of the lower court or

government body stands. A majority of the SC's seated justices — including any Temporary Associate Justices — constitutes quorum for ordinary decisions. Constitutional questions require a minimum of five justices regardless of total seated membership.

#### **§4.3.b *Supreme Court Justice Removal***

A Supreme Court justice may be removed only for cause. Three grounds constitute sufficient cause: constitutional breach in the exercise of judicial authority, as assessed by the EM under §9.1 or as determined by the removing chambers; certified permanent incapacity jointly certified by the EM and LM; or conviction for a disqualifying offense. Removal requires a 2/3 vote of both chambers in a concurrent vote following publication of the relevant ground. No removal vote may be held within 180 days of a major national election without prior SC review within 48 hours. Judicial disagreement — however profound — does not constitute grounds for removal; the independence of SC judicial judgment is absolute and may not itself be invoked as grounds for removal. Upon removal, the most senior Appellate Court judge auto-designates as Temporary Associate Justice under §4.4 until the vacancy is filled.

#### **§4.4 *Supreme Court Selection***

SC justices are nominated by the Civic Consul from the Judicial Pool maintained by the Elections Panel under §9.12 — any pool member meeting the statutory qualifications for Supreme Court appointment is eligible for SC nomination. The Civic Consul nominates within the period defined by statute following a vacancy (not to exceed 90 days for anticipated vacancies, 60 days for unanticipated vacancies). The Senate must vote within the period defined by statute following nomination (not to exceed 120 days); the JM's ongoing audit of the Judicial Pool is available on the NRS and the Senate may consider any published JM findings on the nominee; no deemed confirmation applies, but failure to vote within that period is a constitutional compliance breach. If the Senate declines, the Civic Consul nominates again within the period defined by statute. Where the Civic Consul fails to nominate within 30 days of an LM assessment of constitutional breach under this section, the Senate may select a nominee directly from the Judicial Pool by 2/3 vote of full seated membership; a Senate selection under this provision requires no further Civic Consul nomination and proceeds directly to confirmation. The confirmed justice serves a single non-renewable 12-year term from the date of confirmation. A mid-term replacement serves only the remainder of the original term. At founding, the nine initial justices are confirmed simultaneously and assigned to their three classes by public lot. Upon any SC vacancy, the most senior Appellate Court judge by continuous service is automatically designated Temporary Associate Justice within 5 days — without nomination or confirmation — holding full voting rights until the vacancy is filled. A Temporary Associate Justice may not stand as a candidate for the seat they are temporarily filling.

#### **§4.4.a *Senate Bypass — Public Confirmation***

Where the LM has assessed and reported a Senate breach under §4.4, the Civic Consul may — with 2/3 Assembly consent — place the serving Temporary Associate Justice on the next federal electoral period ballot for public confirmation. Confirmation requires 60% of votes cast; the justice's seniority-

based designation is published to the NRS as ballot information. If confirmed, the justice serves the remainder of the original term and the Senate's confirmation authority for that seat is extinguished. If not confirmed, the justice steps down, the next most senior Appellate Court judge auto-designates, and the process may repeat. Senate confirmation of a registry nominee before the public vote is certified ends the bypass immediately.

#### **§4.5 *Judicial Review and Scope***

Courts have authority to declare legislative acts, executive orders, and administrative decisions unconstitutional and void. No political actor may override a constitutional ruling. The SC identifies the constitutional defect; the Legislature may respond by enacting legislation that addresses it. Courts decide constitutional questions, not policy questions — Where a statute is ambiguous, courts apply the interpretation most consistent with this constitution. Courts may not rewrite clear statutory language. Monitor findings published to the NRS are admissible and must be given due consideration; where a court's conclusions differ from a prior finding, the court must address the inconsistency in its written decision. Any person with a concrete, articulable legal injury has the right to seek relief from a court of competent jurisdiction; the Legislature may not structure the judicial system in a manner that leaves any category of legal injury without a forum for relief. The SC has original jurisdiction over constitutional disputes between States, between a State and the federal government, and over constitutional challenges to federal statutes. A four-justice emergency panel drawn by rotation holds jurisdiction over constitutional challenges to immediate defensive military authority under §2.2 during active operations and must rule within the period defined by statute, not to exceed 48 hours. Where the Court has fewer than four seated justices, the emergency panel consists of all seated justices; quorum for emergency panel review is three. Where conflict between constitutional actors creates a risk of suspension of lawful governance or constitutionally mandated essential services, the constitutional default is continuity at existing scope pending formal resolution. No constitutional actor may use a refusal to certify, approve, or coordinate to achieve the functional suspension of a constitutional obligation. The SC holds expedited jurisdiction over any dispute in which continuity of lawful governance is at immediate risk.

#### **§4.6 *Judgment Recognition***

Judicial judgments, official records, and authenticated documents are recognized across all jurisdictions within the Republic. A judgment valid in one jurisdiction must be recognized in all others. Non-recognition grounds are exhaustive: the issuing court lacked jurisdiction; the judgment was obtained by fraud; or enforcement would require an act defined by the Legislature as categorically unenforceable. Judgments contrary to Article I are void by operation of §17.4. A judgment or status order published to the NRS is self-authenticating in any Republic court and takes immediate effect without re-registration. No State or Territory may discriminate in recognition based on the nature of the parties or the subject matter recognized by the issuing jurisdiction.

## Article V — Citizenship and National Identity

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### §5.1 *Citizenship*

Citizenship is acquired by birth, by parentage, or by naturalization. A child is automatically a citizen if at least one parent is a citizen or legal resident at birth. Citizens acquire their full citizenship rights, including the right to vote and stand for office, at 18. Citizenship may not be stripped from a natural-born citizen. Where a child born on Republic territory would hold no other citizenship, or would otherwise be stateless regardless of birthplace, citizenship is granted from birth. A legal resident may earn citizenship after the continuous residency period and clean legal record established by statute, upon passing a standardized assessment of civic and constitutional proficiency established by statute. A legal resident may alternatively earn citizenship through honorable completion of military or national service. The assessment tests knowledge of constitutional principles and civic structure — not political opinions or cultural loyalty. It is administered by a statutory independent agency under §3.9. No citizenship may be revoked as punishment once granted; the Republic may not manufacture statelessness as a punitive tool. A child born before a parent acquired legal residency or citizenship, who accompanies that parent to the Republic within a Legislature-defined window, receives derivative status.

### §5.2 *Legal Resident Rights*

Legal residents hold a Residency Credential allowing them to work, enter contracts, own property, and access social state systems under Article XII. They hold all Article I rights as Inhabitants. They do not hold federal voting rights or the right to stand for federal office. No child of a citizen or legal resident may be deported regardless of the child's own documentation status.

### §5.3 *Custodial Care of Citizen Children*

Where a parent or guardian who is the primary caregiver of a citizen child is removed from the Republic, the Republic accepts responsibility for that citizen child — housing, care, and connection to remaining family. The Republic may not separate citizen children from their sole caregivers without providing for them. Where a removal order would deprive an Inhabitant child of their primary caregiver, that order is stayed pending resolution of custodial arrangements.



## Article VI — Immigration and Residency

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### *§6.1 The Two-Stage Immigration System*

Every immigration application must clear two sequential stages: State sponsorship and federal certification. Legal residency requires passing both stages. States retain discretion over whom they sponsor but may not apply sponsorship criteria that violate §1.6. Federal certification categories are established by statute; no ideological screening or nationality-based quotas may be applied at any stage. Any denial must specify the precise ground in writing. Once an applicant clears both stages, the Legat Consul must ministerially issue residency credentials; interference with credential issuance by the Legat Consul is constitutionally prohibited. The Legislature may establish a Federal Sponsorship Category where federal agencies serve as the State sponsorship stage for applicants serving a defined federal interest; this does not bypass federal certification. The Legislature may set aggregate limits on total applications received and processed in any period, provided limits are applied without §1.6 discrimination. Asylum proceedings under §6.3 are exempt from the State sponsorship stage — no State's refusal to sponsor can extinguish a §1.21 asylum claim.

### *§6.2 Enforcement, Removal, and Appeals*

Only the federal government may remove individuals from the Republic. Removal occurs only for violations of laws the Legislature has defined — executive detention without statutory basis is unlawful detention subject to habeas corpus. Federal certification denials are judicially challengeable on three grounds: criterion not established under the federal certification mandate; discriminatory grounds contrary to §1.6; or procedural violation affecting the outcome. State sponsorship denials are not reviewable on the merits of the sponsorship decision but are challengeable as constitutional violations where made on §1.6 discriminatory grounds — a court finding discrimination may order reconsideration free of discriminatory criteria but may not compel sponsorship. Court decisions on State sponsorship challenges brought on §1.6 grounds are published to the NRS; personally identifying information of applicants who are not public figures as defined by statute is protected consistent with §1.7. Where federal certification is denied on national security grounds, a reviewing court may examine the classified assessment in camera to determine whether it constitutes a credible, specific, and documented security concern; where the court finds the assessment insufficient, the denial is vacated and federal certification must be reconsidered on the remaining criteria. All removal proceedings and challenge proceedings under this section carry the right to legal representation; where an applicant cannot afford representation, counsel is appointed at public expense.

### *§6.3 Asylum and Protection*

Asylum proceedings operate on a separate constitutional track from the dual-gate system. Any person who files an asylum claim under §1.21 is an Inhabitant from the date of filing — entitled to Article I protections and social state access. Claims must be determined before any removal order takes effect. A claim filed solely to delay a final removal order may be expedited under procedures the

Legislature defines, consistent with the right to a fair hearing. Where the Asylum Court grants protection, the person receives federal residency credentials by operation of that grant; State sponsorship and federal certification are not required conditions. The manner of entry does not affect the right to claim asylum or have that claim determined. No penalty arising solely from irregular entry may be imposed on a person whose claim is pending or has been granted. Asylum proceedings must provide: a qualified adjudicator, interpreter access, the right to present evidence and witnesses, the right to legal representation with appointed counsel at public expense where the applicant cannot afford representation, a written decision with grounds, and a right of appeal — regardless of point of entry. The asylum proceedings statute must ensure accessibility to persons in Territories and geographically remote areas. The Asylum Court is a federal judicial institution constitutionally independent of both executive branches. Its judges are appointed under §4.2 and hold full tenure protections. The Legislature may not establish any asylum determination body as a subdivision or instrumentality of either executive branch. An unaccompanied minor arriving in the Republic is an Inhabitant from the moment of contact and holds full §1.21 protection. A federal legal guardian must be appointed by the federal court with jurisdiction over the point of contact within 72 hours. No unaccompanied minor may be detained in a facility not specifically designated and resourced for children.

#### **§6.3.b** *Unresolvable and Security Cases*

The Legislature must define a minimum status, material conditions, and periodic judicial review for persons subject to final removal orders that cannot be executed — because the destination country will not accept them or execution would violate §1.21. Indefinite stateless detention is constitutionally prohibited. Where the Asylum Court grants §1.21 protection to a person who poses a documented security threat, removal remains constitutionally barred and indefinite unreviewed detention is not available. Detention is permitted subject to: mandatory judicial review by an independent federal court within 90 days of initial detention; mandatory review every 180 days thereafter; statutory minimum conditions of humane treatment; and no detention beyond 5 years without annual SC review.

## Article VII — Elections

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### §7.1 *The Right to Vote*

Every citizen holds the right to vote in federal elections and the right to have that vote counted. Government at every level is prohibited from taking any action that makes voting more difficult, less accessible, or less secure. No law, rule, administrative decision, or practice that reduces access to the franchise is constitutionally valid. The Republic holds an affirmative obligation to make voting as accessible as possible consistent with security — it may not compel citizens to vote, but it must provide conditions in which doing so is genuinely possible. Federal election periods are public holidays.

### §7.2 *Consular Election System*

The Legat Consul is elected through two concurrent requirements: a national RCV majority and a State plurality qualification. A candidate wins outright by satisfying both. Where a candidate's national RCV majority reaches or exceeds 60% of active ballots, the State plurality requirement is waived. Where no candidate wins outright, a runoff is conducted between the two candidates with the highest national first-preference totals, determined by national RCV only with no State plurality requirement; where two candidates are tied for the second position, the Elections Panel determines which advances by lot. Where the runoff itself produces a tied result, the Elections Panel determines the winner by lot in a public session; the result is published to the NRS and is final. The Elections Panel administers and certifies all consular elections. Territory citizens vote in consular elections and their votes count in the national RCV total; Territories are not included in the State plurality calculation. A candidate satisfies the State plurality requirement by receiving more first-preference votes than any other candidate in a majority of the Republic's States. The Elections Panel certifies State-by-State first-preference results as part of overall election certification. Certification is final and may be challenged only before the SC within 14 days of certification by either candidate, any State or Territory government on the ground that the certification does not accurately reflect votes cast within its jurisdiction, or the Elections Panel itself where it identifies a material error in its own certification.

### §7.3 *Federal Elections*

Federal elections are held at regular intervals: Assembly elections every two years; Senate elections on the staggered six-year cycle; Consular elections every six years. All federal elections use Ranked Choice Voting — majority required, not plurality; Consular elections use RCV within the framework of §7.2, which adds the State plurality requirement. The Legislature defines by statute the specific timing, duration, and structure of the federal electoral period within these constitutional floors. Federal elections are administered by the States within standards established and enforced by the Elections Panel; all state election systems must connect to and operate through the National Voting System, free from executive interference. The Legat Consul may not declare, postpone, or influence the scheduling of elections — including declaring emergencies that have the effect of delaying them. No State may take any action that reduces NVS access, functionality, or availability within its territory. States

may offer early voting, mail-in ballots, and alternative participation methods provided all methods connect to the NVS and meet Elections Panel standards. The Republic shall provide such financial and technical assistance as is necessary to ensure every State has the capacity to procure certified equipment and meet federal election standards; the Legislature establishes the assistance mechanism and eligibility criteria by statute; the Elections Panel certifies whether assistance has been sufficient to bring each State into compliance.

**§7.3.a** *Special Elections and Postponements*

Special elections for vacancies are administered by the Elections Panel under procedures established by statute. Where the Elections Panel certifies that elections cannot be held across a substantial portion of the Republic due to a natural disaster or catastrophic infrastructure failure, the Legislature may by 2/3 of both chambers in a concurrent vote postpone the affected election for a period not to exceed 90 days, publishing the determination to the NRS; the mandates of sitting members extend automatically for that period only. The Elections Panel publishes a finding when conditions have normalized sufficiently for elections to proceed; elections must be held within 30 days of that publication. Either chamber may petition the SC if it disputes the Elections Panel's finding; the SC must rule within 7 days. No further postponement may be granted without a new Elections Panel finding of impossibility and a new 2/3 legislative determination.

# Article VIII — Electoral Finance and Campaign Conduct

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## §8.1 *Electoral Finance*

All contributions above the de minimis threshold must be publicly disclosed to the Elections Panel and published to the NRS — anonymity in electoral finance is prohibited. Individual contributions to electoral campaigns are capped at a level defined by statute. Corporate, organizational, and foreign contributions are prohibited; the prohibition on foreign contributions applies to any person or entity that is not a Republic citizen or resident. Independent expenditures made in support of a campaign are subject to the same disclosure requirements as direct contributions; coordinated expenditures are treated as direct contributions. Financial contributions to electoral campaigns are not constitutionally protected speech under §1.5 and are not protected as associational activity — the regulation of electoral finance is explicitly reserved from both speech and associational protection.

## §8.2 *Campaign Conduct*

Candidates for constitutional office campaign in compliance with published Elections Panel conduct standards, which include: prohibition on impersonating other candidates; prohibition on vote suppression activities; and prohibition on interference with the electoral administration process. Campaign communications must clearly identify their sponsor. Fabricated or deceptively edited communications about other candidates are a constitutional violation; the Elections Panel publishes findings of violation to the NRS and candidates found in violation are subject to sanctions defined by statute. Any attempt by a foreign government, foreign national, or foreign-controlled entity to influence a Republic election is a constitutional violation; candidates who knowingly accept foreign assistance are disqualified from that election cycle. Constitutional officeholders standing for election in a different race must observe strict separation between official functions and campaign activity; official resources may not be used for campaign purposes.

## §8.3 *Public Spectrum Access for Campaigns*

Licensees operating on public broadcast spectrum — including television, radio, and licensed carriers of automated political communications — shall provide equal free access to qualified candidates during the federal electoral period. The terms and quantity of access are defined by statute. The Elections Panel certifies compliance and publishes findings to the NRS.

## Article IX — The Monitors

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### §9.1 *Three Monitors*

The Republic maintains three constitutionally independent Monitors — Legislative (LM), Executive (EM), and Judicial (JM) — each selected by bodies other than those it oversees. Monitors hold an information-only mandate: they observe constitutional processes, verify compliance, and publish findings to the NRS. Findings are not binding on any constitutional actor and are not a prerequisite for any legal proceeding or governmental function. Each Monitor General serves a 10-year non-renewable term with a constitutionally protected funding floor. Failure of a Monitor to act does not extinguish constitutional authority or suspend any constitutional obligation. Any constitutional officer, chamber, or body may request a focused assessment from any Monitor within that Monitor’s mandate; the Monitor publishes the assessment by the requested date where practicable; a requesting party may proceed whether or not the assessment has been published. Persistent non-responsiveness to reasonable requests may be published by the other two Monitors as a non-responsiveness finding to the NRS.

#### §9.1.a *The Legislative Monitor*

The LM audits the Legislature for fiscal accuracy and constitutional compliance. Responsibilities include auditing the population census for constitutional compliance; reviewing Assembly district maps against §3.3 criteria and publishing germaneness analyses; auditing the Elections Panel’s administration of the referendum eligibility process; auditing legislative mandate compliance; and publishing an annual compliance report to the NRS.

#### §9.1.b *The Executive Monitor*

The EM audits both executives and the Monetary Authority. Annual responsibilities include: military compliance assessment covering whether military force was used for an authorized purpose under §14.1, whether legislative authorization and allocation requirements under §14.2 were observed, whether the §2.3 intelligence warrant requirement was maintained, and whether all military orders were published to the NRS within the required period; publishing clemency background reports before any executive act; reviewing disclosure records for constitutional appointments; and auditing electoral finance within the period defined by statute following any election. The EM audits constitutional officers for dereliction — failure to perform a constitutionally mandated function within the required period where that failure was not caused by circumstances genuinely beyond the officer’s control; political disagreement with a constitutional requirement is not a defense.

#### §9.1.c *The Judicial Monitor*

The JM audits the courts for judicial scope and independence, and conducts annual audits of the Elections Panel for electoral integrity compliance, including the administration of the Judicial Pool and all constitutional pools. The JM reviews compliance with compact agreements under Article XVI and Associated Community compact agreements under Article XX. The JM administers all constitutional lottery draws and candidate certification functions.



#### **§9.1.d *Monitor General Term Expiry and Incapacity***

A Monitor General's constitutional authority terminates automatically at the moment their term expires — no further act or proceeding is required. Any official act taken after term expiry is constitutionally void. Where an unexpected vacancy arises mid-term — through death, resignation, removal, or certified incapacity — the most senior eligible member of the affected Monitor's candidate pool by continuous pool tenure who accepts designation serves as Acting Monitor General until a successor is confirmed under §9.3. The Acting Monitor General holds full constitutional authority of the office. The Acting Monitor General is not eligible for permanent appointment to the position in which they serve; upon conclusion of acting service they return to the candidate pool. The JMC confirms the designation and both executives are notified immediately; notice does not condition the designation's effectiveness. Pool membership satisfies the eligibility requirement of §3.13. Where a Monitor General is certified incapacitated by the other two Monitors jointly, the incapacitated Monitor General's authority is suspended from the moment of joint certification and the acting mechanism under this provision activates immediately.

#### **§9.2 *Selection and Independence***

Each Monitor is constituted through a process that structurally excludes the body being watched from selecting its watchers. The SC nominates the LM Monitor General, confirmed by national popular vote. The Assembly Speaker and Senate Speaker jointly nominate the EM Monitor General, confirmed by national popular vote with JM audit findings on the nominee's disclosure record published to the NRS before the vote. The JM Monitor General is selected by public lottery from a pool of former judges audited by the LM and EM.

#### **§9.3 *Monitor General Selection***

All Monitor General confirmations follow the same process: the nominated or lottery-selected candidate is confirmed by national popular vote at the next federal electoral period by simple majority; timing is defined by statute to ensure seamless succession; if the confirmation vote fails, the §9.1.d acting mechanism activates and a new selection must begin within 60 days. The Elections Panel administers all confirmation votes. The LM Monitor General is nominated by the SC from the pool maintained by the Elections Panel and audited jointly by the EM and JM. The EM Monitor General is nominated jointly by the Assembly Speaker and Senate Speaker from the pool maintained by the Elections Panel and audited jointly by the LM and JM, with JM audit findings on the nominee's disclosure record published to the NRS before the vote; where the Speakers fail to jointly nominate within 60 days of a vacancy, the Senate selects from the pool by 2/3 vote. The JM Monitor General is selected by public lottery under §9.12 from the JM Candidate Pool under §9.4.a. No two Monitor General terms may begin within 18 months of each other. The confirmed successor assumes full authority at the precise moment the incumbent's term concludes.

#### **§9.4 *Judicial Monitor Audit and Lottery Administration Mandate***

The JM holds two constitutional mandates: as auditor, it monitors the court system, audits the Elections Panel's administration of the Judicial Pool, and conducts compliance audits across compact obligations; as certification

administrator, it certifies lottery draws and panel selections throughout the constitution. The audit mandate is information-only; the lottery administration mandate is ministerial — the JM administers the process and certifies the result, but cannot influence the outcome. Annual audit responsibilities include: court operations for scope compliance and independence; the Elections Panel for electoral integrity; SC independence; inferior court compliance with jurisdictional limits; and compliance under Article XIV, Article XIX, and Article XX compacts. Any candidate removed from a ballot by the Elections Panel may appeal to the Appellate Court within 14 days; the Court reviews only whether eligibility criteria were correctly applied and must rule within 21 days. The Elections Panel maintains the JM Candidate Pool. Eligibility is limited to former Republic judges — persons who have completed judicial service on a court of record at the trial court level or above, whether in a State court or the Republic's federal court structure — who have been out of active judicial office for at least one year. Former SC justices must have been out of SC service for at least five years. The JM holds no role in constituting or certifying its own candidate pool. The Elections Panel applies the eligibility criteria and enters qualifying applicants into the pool. The LM's ongoing audit encompasses verification of judicial service records; the EM's ongoing audit encompasses financial disclosure review; both publish findings to the NRS. The JMC conducts the lottery in a public session; the outgoing JM Monitor General does not participate. The pool is publicly accessible at all times.

#### **§9.4.b** *Judicial Pool — SC Eligibility Criteria*

The Elections Panel maintains the standing Judicial Pool. Any citizen meeting the eligibility criteria — at least 15 years of legal practice or 10 years of judicial service, no current government position, no disqualifying financial interest — may apply directly to the Elections Panel. The Elections Panel applies the stated eligibility criteria and enters qualifying applicants into the registry. The JM's ongoing audit of the Elections Panel encompasses the administration of the Judicial Pool; audit findings on the registry and its members are published to the NRS as part of that audit. The EM's ongoing audit of constitutional appointments encompasses financial disclosure review; findings are published to the NRS. Any applicant excluded from or removed from the registry may appeal to the SC within 14 days on the sole ground that the eligibility criteria were misapplied. The Registry is publicly accessible on the NRS at all times.

#### **§9.6** *Monitor Operations*

Every finding, report, and discrepancy notice must be published to the NRS permanently and free of charge; no official may suppress, delay, classify, or alter a Monitor report before publication. Monitor reports are permanently exempt from classification. Where any Monitor publishes a Critical Failure finding, the Legislature must publish a remediation plan with actions and timelines within the period defined by statute; failure to publish a remediation plan is a constitutional compliance breach. Any staff member may publish a minority report directly to the NRS if they believe a finding has been improperly omitted or suppressed — staff cannot be disciplined for doing so. All three Monitors jointly publish an annual State of the Republic report on a fixed date regardless of whether any political actor requests it. Where a compliance question spans multiple Monitor mandates, the Monitors may conduct a joint investigation;

neither Monitor General may veto the other's contribution. All three Monitors have unrestricted access to records, personnel, facilities, and systems within their audit mandate; obstruction is a constitutional breach.

#### **§9.10 *Monitor Minimum Funding Guarantee***

The annual appropriation for each Monitor, the Elections Panel, and the NRS Panel may not fall below the inflation-adjusted equivalent of the prior fiscal year's funding level without a 2/3 vote of both chambers in a concurrent vote. The Monetary Authority certifies each body's prior-year funding level adjusted for inflation and publishes the certified floor to the NRS before the Legislature begins its annual budget process. Where a budget reduces any protected body below its certified inflation-adjusted floor without the required supermajority, the prior-year funding level takes effect automatically for that body by constitutional operation.

#### **§9.11 *Joint Monitor Council***

The three Monitor Generals jointly constitute the JMC as the standing coordination body for matters crossing Monitor jurisdictions. The JMC formally houses all jointly administered constitutional functions — including lottery draws and selection processes throughout the constitution. The chair of any joint session is the Monitor General whose domain covers the primary subject matter; where all domains are equally engaged, the chair rotates annually. Two of the three Monitor Generals constitute a quorum for all JMC functions; no mandatory joint function may be permanently blocked by a single Monitor General's non-participation. Where a Monitor General does not participate in a joint function, their position — if stated — is published to the NRS alongside the joint determination. Where the Monitor Generals cannot reach consensus on a joint matter, each publishes their individual assessment and the disagreement is noted in the permanent NRS record. Sustained non-participation by a single Monitor General is subject to the §9.11.a Institutional Compromise Protocol. The JMC conducts an annual NRS audit covering both operational compliance — whether the NRS is functioning as constitutionally required, accessible, and free of single points of failure — and content integrity — whether all constitutionally required publications across all domains have been made and no records have been altered or deleted. The joint annual NRS audit is published to both chambers. The JMC has no authority to override the individual mandate of any Monitor.

##### **§9.11.a *Institutional Compromise Protocol***

Where two of the three Monitors jointly assess and report that the third is operating in demonstrable bad faith, they petition the SC directly for confirmation of the finding; the SC rules within 14 days. Upon filing the petition, the two petitioning Monitors jointly designate an Acting Monitor General as the longest-tenured member of the affected Monitor's candidate pool who accepts the designation; both executives are notified immediately. The Acting Monitor General assumes all constitutional functions of the compromised Monitor from the moment of designation. If the SC does not confirm the finding, the Acting Monitor General stands down and all functions return immediately to the original Monitor General. If confirmed, the Acting Monitor General serves until either the original Monitor General is restored to full function or a new

permanent Monitor General is confirmed under §9.3 — whichever occurs first. The Acting Monitor General is not eligible for permanent appointment to the position in which they serve; upon conclusion of acting service they return to the candidate pool.

#### **§9.12 *Constitutional Pool Framework***

The Elections Panel maintains all constitutional candidate registries and pools, including the Judicial Pool, and administers public access to their records via the NRS. Each pool is subject to ongoing Monitor audit; findings are published to the NRS. Any applicant excluded may appeal to the SC within 14 days on the sole ground that the qualification requirements were misapplied. Lottery draws are conducted by the JMC in a public session and published to the NRS. The constitutional minimum for all pools is five eligible members; where a pool falls below five, the JM publishes a compliance breach and the relevant nominating bodies must act to restore the minimum within the period defined by statute. Where a pool reaches zero before an acting designation is made, the most senior eligible federal judge by continuous service who is not currently serving in any constitutional office serves as Acting officer until the pool is restored; this fallback applies only to judicial and Monitor pools. Eligibility criteria for all pools are strictly objective — years of practice or service, office status, and financial interests as defined by this Constitution or by statute. No registry administrator may apply criteria relating to legal philosophy, judicial temperament, ideological orientation, or political association; any exclusion on such grounds is constitutionally void. Where an applicant is excluded or removed, the administering body must publish the specific grounds to the NRS within 14 days; an excluded applicant may petition the SC within 30 days of NRS publication on the sole ground that stated grounds do not correspond to an established eligibility criterion. Changes to eligibility criteria apply prospectively only and do not affect persons already entered in a constitutional pool or registry under the criteria applicable at the time of their entry.

#### **§9.14 *Constitutional Officer Removal — Standard Track***

This section governs for-cause removal of all constitutionally confirmed independent officers except Supreme Court justices under §4.3.b and elected executives. Monitor Generals are subject to for-cause removal under this section; the Judicial Track is additionally available for Monitor Generals where two of the three Monitors jointly assess and report for-cause grounds. A concurrent resolution of 1/3 of either chamber, or two of the three Monitors jointly, may initiate removal by filing stated grounds with the SC. The SC determines within 14 days whether the stated grounds constitute at least one statutory removal category for the subject office; the SC reviews constitutional category only, not factual merits. If grounds are confirmed, duty suspension activates immediately and removal requires a 2/3 concurrent vote of both chambers; no removal vote may be held within 180 days of a major national election without prior SC review within 48 hours. If grounds are not confirmed, the process closes and may not be reinitiated on the same or substantially similar grounds within six months. Where the SC fails to rule within 14 days, grounds are deemed confirmed and duty suspension activates immediately. The Legislature defines enumerated removal categories for each constitutionally confirmed office by statute.

# Article X — The National Record System

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## **§10.1** *National Record System*

The National Record System is the permanent, tamper-evident public record of the Republic — freely accessible to every Inhabitant at no cost. Every constitutional act, order, finding, certification, designation, declaration, and determination made under this Constitution is published to the NRS as a permanent record; no provision need state this obligation individually. All electoral records — voter registration, ballot counts, audit trails, and certification documents — must be published to the NRS within the timeframes specified by the Elections Panel's constitutional mandate under Article XI; no classification exception applies to electoral records. Where a specific publication timeline is provided it governs; otherwise publication occurs at or before the effective moment of the act. Records may not be deleted, altered, or reclassified after publication; corrections are published as new entries alongside the original. Where the NRS Panel determines by unanimous vote that a record poses an imminent, specific, and documented threat to individual safety, it may temporarily restrict access for up to 30 days while the SC reviews the restriction; the SC must rule within 14 days; the record is permanently restored unless the SC confirms the restriction on the narrowest possible grounds. The original timestamp and the restriction record both remain as permanent NRS entries. Government acts take legal effect from the moment of issuance regardless of NRS status — the NRS is the record of government, not a condition of it. The JM maintains a continuously operating parallel authentication system, physically independent of the NRS, capable of preserving all constitutional acts with full constitutional effect from issuance; upon NRS restoration, parallel records migrate with their original timestamps. Where the NRS has not been restored within 180 days, the parallel system becomes the constitutional record; the Legislature must establish permanent restoration obligations by statute within 90 days of that threshold. The Legislature defines technical standards for both systems by statute. Records published by any Republic jurisdiction are recognized as authentic without re-certification. Monitor reports are permanently exempt from classification. Classification used to conceal a constitutional violation or illegal order is a constitutional offense. Funding for the NRS may not fall below the prior year's level without a 2/3 vote of both chambers.

## **§10.3** *Classification Criteria*

Government records may be classified only on grounds the Legislature defines by statute. Classification to conceal a constitutional violation, policy disagreement, or political embarrassment is prohibited and void. The classifying authority must state the statutory ground at the time of classification. No record may remain classified beyond 25 years from the date of original classification. A single 5-year extension may be granted where the responsible executive publishes a justification to the EM; the EM assesses whether the justification meets the statutory standard and publishes its finding to the NRS. No material may remain classified beyond 30 years under any circumstances. On expiry, the NRS Panel publishes the declassified record within 30 days of the classification ceiling date; this obligation is automatic and requires no further government act.

All other classification periods, procedures, and review mechanisms are defined by statute within this ceiling.



## Article XI — NRS Panel and Elections Panel

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### §11.1 *NRS Panel and Elections Panel*

Two constitutionally independent panels — the NRS Panel and the Elections Panel — operate the Republic’s permanent record infrastructure and electoral systems respectively. The NRS Panel operates the National Record System. The Elections Panel establishes and maintains the National Voting System, sets administrative and technical standards for federal elections, certifies election equipment for state procurement, audits state compliance with federal election standards, administers referenda and confirmation votes, and certifies all federal election results. Where the Elections Panel certifies a State’s election system as non-compliant before an election, the Panel may withhold result certification for affected districts pending compliance or a special election under §7.3.a. Each panel is operationally independent of the other, of both executives, and of the Legislature in the exercise of its functions. The Legislature defines qualification standards, panel composition, term lengths, and operational parameters for each panel by statute; panel members are appointed through the independent agency process under §3.9. Each panel must have no fewer than five members at all times; the Legislature may not reduce either panel below this floor. No single appointing authority may hold a majority of appointments to either panel within any single electoral term. The Chair of each panel is its most senior member by continuous service; where two or more members have equal continuous service, the Chair is determined by lot conducted by the JMC. Each panel exercises only those ministerial functions expressly granted by this Constitution and by statute. The Legislature must establish by statute a procedure for each panel to adopt temporary technical measures in response to imminent security threats or system failures within its domain; such measures may not change electoral rules, timelines, or NRS record permanence, and expire within 72 hours unless ratified by a majority of the panel's seated members.

### §11.2 *NVS Properties and Voting Rights*

The National Voting System must maintain three constitutionally required properties simultaneously: ballot secrecy (technically impossible to link any vote to any voter, including in post-election audits), public auditability (aggregate results mathematically verifiable by anyone with NRS access; every vote individually verifiable by the voter without revealing identity to any other party), and resilience (capable of operating in degraded conditions without compromising either secrecy or auditability). No information generated by the NVS — including voter participation records — may be shared with any government body or foreign entity for any purpose other than administering the relevant election. The Elections Panel issues and manages the Citizen Voting Credential, storing only cryptographic identifiers — not names or biometric data. Voter eligibility is verified through cryptographic matching against citizenship and residency records maintained separately from the NVS and accessible only for that purpose. No State may impose requirements or intermediaries that effectively reduce NVS access or impose burdens not present in direct NVS participation. Before each federal election window, the Elections Panel delivers

to every eligible citizen the list of federal races on their ballot, NVS access procedures, and the certification timeline through at least two distinct channels.

### **§11.3 *State Election Non-Compliance***

Where the Elections Panel finds through audit that a State's election administration materially fails to meet the constitutional standards required under §11.1, it publishes the finding to the NRS and notifies the State formally. The State has the period defined by statute to cure the identified failures. Where the State does not cure within that period, the Elections Panel administers the relevant federal election directly within that State for that electoral period only; State administration resumes automatically at the conclusion of that period. The State may petition the SC for expedited review of the Elections Panel's finding at any point; the SC must rule within the period defined by statute. A finding of non-compliance does not affect the validity of votes cast; the Elections Panel's administration obligation is to ensure constitutional standards are met going forward.

## Article XII — Social State and Economic Rights

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### *§12.1 The Social State and Monetary Authority*

The Republic is a social state. Every Inhabitant is entitled to conditions of life consistent with human dignity, which the Republic fulfills through three mandatory systems: universally accessible healthcare insurance; social assistance sufficient to maintain basic material conditions; and free compulsory education for every child. The Legislature establishes the framework for each by statute.

#### *§12.1.a The Monetary Authority*

The Legislature must establish the Monetary Authority as an independent agency under §3.9, responsible for monetary policy, currency issuance, and fiscal integrity certification. The MA has exclusive authority to issue the Republic's currency; no State, Territory, or other body may issue instruments intended to function as legal tender within the Republic. The Legislature may not define MA independence standards in a manner that compromises the credibility of its certification functions; the EM audits MA operations and independence annually and publishes findings to the NRS.

### *§12.2 Fiscal Accountability*

The Legislature must pass a balanced budget or publish a structural deficit justification reviewed by the MA for fiscal accuracy. Structural deficits above the threshold defined by the MA require a published plan for return to balance. Where the Legislature fails to enact a budget by the constitutional deadline defined by statute, an interim automatic appropriation takes effect by constitutional operation covering: judicial operations, active defense authorizations under §14.2, and social state continuity under §12.1; civil service compensation; and debt service obligations. The interim appropriation continues at the prior fiscal year's inflation-adjusted level until a budget is enacted; no new programs may be initiated or expanded under the interim appropriation. Where discretionary government spending is suspended due to budget failure, the pay of all members of both chambers is withheld from the same date on which government employee pay is withheld and released only upon budget enactment. The Legislature must fund the National Endowment by appropriation in years of fiscal surplus; failure to adequately fund the Endowment is a constitutional compliance breach.

### *§12.3 Taxing Power and National Revenue Fund*

The Legislature has exclusive authority to levy taxes, duties, and tariffs by statute; no other body may impose a tax, duty, or levy of any kind. All public money received by the Republic — including tax revenue, fees, and other receipts — is deposited into the National Revenue Fund. No money may be withdrawn from the National Revenue Fund except by legislative appropriation. The EM audits the Fund's receipts and disbursements as part of its annual fiscal mandate and publishes findings to the NRS. No tax may discriminate on the basis of the characteristics listed in §1.6. Tariff rates established by a ratified treaty or approved trade agreement under §3.6 constitute legislatively authorized rates

for the duration of that instrument; the Legislature may set tariff schedules within which the Legat Consul may negotiate specific rates.

#### **§12.4 *Ethics and Conflict of Interest***

All constitutional officers must disclose all financial interests, holdings, income sources, and liabilities to the EM within the period defined by statute after taking office and annually thereafter; disclosure records are published to the NRS. Any officer with a direct financial interest in a decision within their authority must recuse themselves; recusal is self-executing. Any decision made without required recusal is voidable; the relevant chamber may void the decision by simple majority within 90 days of an EM finding of conflict. Constitutional officers may not, for a period defined by statute after leaving office — which may not be less than two years — engage in any activity that monetizes or draws on non-public information, relationships, or access accumulated during service; the EM audits post-service activities of constitutional officers for compliance with this restriction and publishes findings to the NRS; enforcement is through the appropriate legal authority. Officers may not accept gifts above a de minimis threshold; all gifts above the threshold must be disclosed to the EM and deposited with the relevant treasury. All records created in the exercise of official functions are public records and may not be retained, destroyed, or removed by departing officers. The EM investigates alleged violations and publishes findings to the NRS; where findings warrant further action, the EM refers to the appropriate authority.

##### **§12.4.a *Codes of Conduct and Recusal***

The Legislature may by statute establish codes of conduct and procedural rules for any constitutionally established office outside the Legislature, including standards for recusal from specific proceedings, disclosure obligations beyond those required by §12.4, and disciplinary procedures for conduct falling short of removal grounds under §9.14. Such rules must be consistent with the independence protections of the relevant office and may not be used to constrain the substantive exercise of any constitutionally assigned function. In the absence of statute establishing recusal standards for a given office, an officer must recuse where their impartiality could reasonably be questioned. An officer who fails to recuse in circumstances requiring recusal — whether defined by statute or this default standard — acts in constitutional breach; the act or determination in which they participated remains subject to challenge on that ground. No statute enacted under this provision may be amended or repealed within the legislative session immediately following the session of its enactment; thereafter, amendment or repeal requires a 2/3 majority of both chambers.

#### **§12.5 *National Endowment***

The National Endowment is a constitutionally established reserve fund that backstops the Republic's social state obligations under §12.1 during periods of Severe Revenue Contraction, as certified by the Monetary Authority. The Endowment operates independently of the annual budget process and is managed by the Monetary Authority as part of its constitutional mandate; the Monetary Authority's sole obligation with respect to the Endowment is to preserve and grow it for social state backstop purposes. Disbursements are activated on Monetary Authority certification of Severe Revenue Contraction

and continue until the Monetary Authority certifies the contraction has ended. The EM audits the Monetary Authority's management of the Endowment annually and publishes findings to the NRS.

#### **§12.6** *Compensation of Public Officials*

No government official may set their own compensation or the compensation of their direct supervisors. All official compensation is set by statute and is a public record on the NRS. The Legislature may by statute set the compensation of elected constitutional officers; no such change takes effect until after the next election for the relevant office following the session in which it was enacted. Official benefits and accommodations reflect the functional requirements of the office, not the status of the officeholder; no benefit may exceed what the function genuinely requires.

#### **§12.7** *Internal Commerce*

No State or Territory may impose requirements on goods, services, or economic activity originating in another State or Territory that are more burdensome than those applied to its own. The Legislature may establish uniform internal commerce standards by statute.

#### **§12.8** *Fiscal Equalization*

The Legislature shall by statute establish a mechanism ensuring that every State and Territory has fiscal capacity reasonably sufficient to fulfil the Social State obligations under §12.1 and the rights guaranteed under Article I. The mechanism is reviewed at intervals the Legislature defines by statute. The EM certifies whether the mechanism is operating as required and publishes its finding to the NRS annually. Where the EM finds the mechanism has failed, the Legislature must respond within 90 days.

## Article XIII — Direct Democracy

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### §13.1 *Optional Referendum*

Citizens may initiate a national referendum to repeal enacted legislation. The petition process begins within 90 days of enactment and proceeds in two phases, each authenticated through the NVS using Citizen Voting Credentials. Phase One, lasting up to 8 months, requires signatures from citizens equal to a percentage of eligible voters — defined by statute at not less than 0.5% nor more than 3% — in each of at least one-third of all States and Territories. Phase Two, lasting up to 8 months following Phase One’s completion, requires signatures from 5% of eligible voters nationally; signatures gathered in Phase One carry over and count toward this threshold. Laws that solely or primarily expand an Article I right, budget laws, and laws implementing a constitutionally mandated obligation are ineligible. The Elections Panel applies these ineligibility categories when administering petitions; the LM’s ongoing audit of legislative compliance encompasses published findings on the character of enacted laws, which the Elections Panel and any party may reference. Any eligibility determination is challengeable in the Appellate Court within 14 days. If the threshold is met, the Elections Panel administers the referendum within 90 days of verification. A simple majority of votes cast, subject to a turnout threshold defined by the Legislature not to exceed 50%, repeals the law immediately upon certification. A failed referendum may not be re-initiated on the same or substantially similar grounds; the Legislature may re-enact a repealed law, which is again subject to referendum.

### §13.2 *Citizen Legislative Initiative*

Citizens may propose legislation directly to the Legislature. The petition process proceeds in two phases, each authenticated through the NVS using Citizen Voting Credentials. Phase One, lasting up to 10 months, requires signatures from citizens equal to a percentage of eligible voters — defined by statute at not less than 0.5% nor more than 3% — in each of at least one-third of all States and Territories. Phase Two, lasting up to 10 months following Phase One’s completion, requires signatures from 10% of eligible voters nationally; signatures gathered in Phase One carry over and count toward this threshold. Once the threshold is met, the Legislature must vote on the proposal within 90 days; if it fails or is not voted on, the proposal proceeds to a direct citizen referendum; passage requires 60% of votes cast with at least 50% citizen participation. A failed initiative may not be re-initiated on the same or substantially similar grounds.

### §13.3 *Electoral Supermajority Threshold*

60% of votes cast is the constitutional threshold for all direct electoral supermajority determinations. This threshold applies wherever this Constitution requires a supermajority outcome in a citizen vote rather than a legislative vote: the consular first-round threshold at which the State plurality requirement is waived (§7.2); public confirmation of a Supreme Court justice under the Senate bypass mechanism (§4.4.a); and public election removal of a constitutional officer under §9.14. The Legislature may not set a higher or lower threshold for any direct electoral supermajority determination without a constitutional



amendment. This provision does not govern the optional referendum under §13.1 (simple majority of votes cast subject to a 50% turnout ceiling) or the citizen legislative initiative under §13.2 (60% of votes cast with at least 50% participation where the Legislature has not acted); it governs determinations that require constitutional supermajority democratic consent.

## Article XIV — Military Authorization and Accountability

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### *§14.1 Authorized Purposes for Military Force*

Military force serves two authorized purposes: protection of the Republic's territory, citizens, and treaty allies; and, with legislative authorization stating the specific grounds, response to crimes against humanity as defined under international law. The Legislature applies that definition directly in each authorization; no prior international recognition or finding is required. Three purposes are explicitly prohibited regardless of legislative authorization: the installation, support, or maintenance of a specific governmental structure in another sovereign state; resource extraction; and ideological imposition. Legislative authorization must state which authorized purpose it serves; authorization that cannot be linked to an authorized purpose is constitutionally void. The SC's review under this section is limited to whether the Legislature linked the authorization to one of the purposes enumerated above; the SC does not review whether the underlying facts satisfy that purpose's legal threshold.

### *§14.2 Defense Authorization and Allocation*

Military expenditure requires legislative authorization under §14.1 and budget passage under §2.5; the Legat Consul executes that funding. Where authorization specifies categories or amounts, the Legat Consul is bound by them; otherwise, the Legat Consul determines allocation within the authorized total. The Legat Consul answers public questions before the Senate at intervals defined by statute and provides classified briefings to the Senate during active operations. Neither obligation constitutes Senate approval or conditions the Legat Consul's authority to act. The Legat Consul keeps the Civic Consul informed of expenditure and its budgetary implications through the Council of Ministers under §2.14. When legislative authorization expires or lapses, all expenditure ceases; contracts may wind down for up to 90 days, with no new commitments permitted after expiration. The EM audits expenditure during active operations and publishes findings to the NRS, including intelligence activities conducted in support of those operations, published in classified summary form. The EM publishes a comprehensive accountability report within 180 days of an operation's conclusion.

### *§14.3 Military Accountability*

Within the period defined by statute following legislative military authorization being renewed for a second time, the Legat Consul submits a Transition and Reconstruction Plan to the Senate specifying the Republic's post-conflict obligations: status of alliance obligations, civilian reconstruction support, transitional justice support, and withdrawal timeline. The Senate reviews and approves the Plan, and may amend it in consultation and coordination with the Legat Consul. The approved Plan is published to the NRS and is binding on both executives within their respective domains. Legislative authorization may not be renewed beyond that point unless the Senate has approved a Plan; where authorization is not renewed, expenditure ceases under §14.2.

#### §14.4 *Treaty-Based Military Authorization*

Where an existing treaty requires military action, the Legat Consul may act immediately and must notify both chambers and the Civic Consul within 12 hours, citing the specific treaty obligation triggered. Senate ratification of a treaty by the required supermajority constitutes legislative authorization for all military actions required by that treaty when its obligations are triggered; no separate legislative authorization is required for operations the treaty obligates. The Legislature's authority over treaty-based operations runs through appropriations and through the treaty withdrawal mechanism under §3.6. The oversight and accountability provisions of §14.2 apply from the moment of action. Where the SC determines that a treaty's trigger conditions were not met, military operations are limited to a defensive posture, and both chambers of the Legislature must vote on whether to authorize continuation of the action no later than 30 days after the SC's decision is published. An affirmative vote in both chambers constitutes legislative authorization, and the action proceeds under the ordinary terms of this Article from that point. Absent an affirmative vote within the 30-day period, §14.2's expiration and wind-down provisions apply.

## Article XV — Territorial Structure and Statehood

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### §15.1 *Territorial Compact*

A Territory operates under a Territorial Compact — the restructuring agreement under §15.4 or the incorporation agreement under §15.6 where the Territory results from one of those processes, or otherwise a standard statutory framework the Legislature defines, which must provide for an elected local governing authority over matters of local concern — has federal protections under Article I, accesses social state systems under §12.1, and may begin the Statehood pathway under §15.2. Territories hold Assembly seats proportional to their population and participate as full voting members. Territories do not hold Senate seats; Senate representation is reserved for States.

### §15.2 *The Statehood Audit*

The pathway from Territory to State is automatic upon passing the Statehood Audit and Provisional Membership Period — no political vote is required once the audit is passed. The audit has two components: the LM audits fiscal integrity; the JM audits legal compliance with every Article I right. Both must pass. A Territory that fails receives specific published findings and may resubmit after addressing the failures. The Legislature defines audit methodology and resubmission timelines by statute. Upon passing, the Territory enters a Provisional Membership Period of between one and three years as the Legislature defines; clean completion results in automatic Statehood. Every State must maintain three ongoing conditions: functioning electoral processes, basic rule of law and judicial function, and Article I rights compliance; annual audit verifies continued compliance and a failing State enters a remediation process, not automatic devolution. Where active conflict prevents completion of an annual audit in a significant portion of a State's territory, the LM may publish a provisional audit status finding for that cycle on joint Monitor assessment; provisional status is unavailable where the State materially contributed to the conflict conditions. A defined geographic subdivision of a Territory may petition for Statehood independently of the remainder under the same criteria.

### §15.3 *Mandatory Devolution*

A State enters Mandatory Devolution upon three consecutive annual Statehood Audit findings of failure published by the LM. After each failing audit, the LM publishes an Early Warning specifying compliance requirements; the State must publish a Remediation Plan within the period defined by statute. After three consecutive failures, citizens vote, administered by the Elections Panel under Article XI, on one of two paths: a two-year federal remediation commission, or Provisional status. A State in Provisional status retains its existing governing structure and continues under the Statehood Audit cycle; passing the Statehood Audit restores full Statehood immediately, with no additional vote required. Where Provisional status continues for one year without a passed audit, citizens vote, administered by the Elections Panel under Article XI, on the principle of pursuing devolution, on the same terms as §15.4's voluntary process. An affirmative vote proceeds through negotiation and Senate ratification under §15.4; absent an affirmative vote, the State continues in Provisional status under this section. Sitting senators complete their current elected terms — Senate

seats are not vacated — but no new Senate elections may be held while a State remains in Provisional status or after devolution takes effect, until Statehood is restored; existing Assembly members complete their current terms; Article I rights and social state protections continue without interruption. Within 30 days of a State entering Provisional status, the affected State may petition the SC on the sole ground that the audit findings are factually insufficient to establish three consecutive failures; the Court reviews only the factual basis and must rule within 14 days.

#### **§15.4** *Voluntary Devolution and Merger*

A State may voluntarily restructure its relationship with the Republic. The process requires, first, a State referendum achieving 60% approval of eligible voters on the principle of pursuing devolution; and second, upon approval, negotiation of a restructuring agreement between the State and the Legislature, ratified by Senate approval by 2/3 majority. The agreement specifies asset and liability allocation, transition timeline, constitutional status of successor jurisdictions, fiscal obligations to the Republic, and continuing obligations; it is published to the NRS and legally binding. Social state protections and Article I rights continue through the transition. A Territory or defined portion of a Territory may merge with a geographically contiguous existing State, requiring a 60% referendum with at least 50% participation, approval by the existing State through its own constitutional process, a joint LM-JM Statehood Audit confirming the existing State's integrity is maintained, and Senate ratification by simple majority.

#### **§15.5** *Re-Qualification Pathway*

A Territory resulting from mandatory or voluntary devolution enters the Statehood re-qualification pathway under §15.2 immediately upon the effective date of devolution. No additional political vote is required to begin the pathway. Where a defined geographic subdivision of the Territory separately achieves Statehood under §15.2 or merges with an existing State under §15.4, the remainder continues under this section without interruption or loss of any progress already accrued toward re-qualification.

#### **§15.6** *Voluntary Incorporation*

A sovereign entity may petition to join the Republic's constitutional framework as a Territory. The process requires a petition resolution adopted by the entity's own legislature by 2/3 majority, confirmed by a citizen referendum achieving simple majority on at least 50% participation. Upon confirmation, the entity and the Legislature negotiate an incorporation agreement specifying a transition period not exceeding 48 months; the Legislature ratifies the agreement by 2/3 of both chambers. Under §9.1, either chamber may request a JM assessment of the entity's compliance with §1.19.b before that ratification vote; published JM findings must be given due consideration. Any person with standing may challenge the incorporation before the SC on the ground that the entity systematically violates §1.19.b. No constitutional officer may condition treaty obligations, trade relations, military cooperation, or foreign aid on any entity's decision to initiate or advance this process. An indigenous nation recognized under Article XVI must make a status election under §16.7 before this provision applies.

#### **§15.7 *State Immutability and Territorial Integrity***

A State's constitutional boundaries are fixed. No constitutional mechanism permits a State to divide directly into two or more States — the separating portion must first become a Territory before seeking independent Statehood. The Republic's territorial extent may only be reduced by the consent of the affected population through a parliamentary amendment with Popular Ratification, or through a citizen initiative amendment — parliamentary amendment with State Ratification alone is insufficient. A State may not secede by ordinary statute or State referendum alone. No executive action may alter the Republic's territorial extent. A status election under §16.7 constitutes the consent mechanism required by this section for the purposes of indigenous territorial transitions; no additional Popular Ratification is required.

#### **§15.8 *Local Government***

Local governments — cities, counties, municipalities, and other subdivisions — receive constitutional recognition as primary points of contact between citizens and government. They are entitled to reasonable fiscal capacity to carry out their constitutional functions. States may not systematically defund local governments to achieve de facto centralization of State-level functions.

#### **§15.9 *Voluntary State Independence***

A State may seek independence from the Republic through a two-stage process. Stage One requires the State legislature to resolve by 2/3 majority to submit the independence question to the State's eligible voters; the referendum must achieve 60% of votes cast with at least 60% participation among the State's eligible voters; a failed referendum may not be reinitiated on the same or substantially similar grounds for five years. Upon certification of the referendum result, the Elections Panel publishes the independence petition to the NRS; the election is irrevocable from the moment of publication. The Republic may not prefer, discourage, or offer inducements toward any independence petition or referendum; the Republic must provide factual information about the process upon request. Stage Two requires both chambers to hold a concurrent ratification vote within 90 days of NRS publication; Assembly members elected from districts within the petitioning State and senators whose allocation derives from the petitioning State's population are recused from this vote, and the required 60% majority and quorum for each chamber are calculated from the remaining seated members; if either chamber fails to achieve 60% or fails to vote within 90 days, the petition lapses and the State may reinitiate Stage One without restriction.



# Article XVI — Indigenous Sovereignty

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## **§16.1** *Acknowledgment of Prior Sovereignty*

Indigenous Nations within the Republic's territory hold a distinct constitutional relationship with the Republic based on prior sovereignty. This relationship is acknowledged, not granted — the Republic's constitutional framework does not create indigenous sovereignty; it recognizes sovereignty that precedes it. The compact relationship is bilateral: the Republic acknowledges Indigenous prior sovereignty; Indigenous Nations acknowledge the Republic's constitutional framework within the scope of their compact.

## **§16.2** *Compact Formation*

An Indigenous Nation may enter a compact with the Republic by submitting a compact proposal to the Senate. The Senate must within 90 days either begin compact negotiations or publish written reasons for declining; a declined proposal may be resubmitted after 5 years or after a material change in circumstances. Compact terms are negotiated between the Nation and the Civic Consul, with JM oversight. Compacts take effect upon 2/3 Senate ratification and Indigenous Nation ratification by their own constitutional process.

## **§16.3** *Rights and Governance in Compact Territories*

Article I rights apply in full within all compact territories; no compact provision may limit or qualify any Article I right; where compact governance conflicts with an Article I right, Article I prevails. Indigenous Nations with compacts hold governance, judicial, and resource sovereignty within their territories subject to the specific terms of their compact. Indigenous Nations may establish their own courts with jurisdiction over matters within compact scope, operating in parallel with federal courts; citizens may bring Article I claims directly to federal courts regardless of compact scope. Compact territories include explicit land and resource sovereignty provisions; the Republic may not alter compact land provisions without Nation consent; resource extraction within compact territories requires both Republic and Nation approval. The Republic recognizes Indigenous governance structures as legitimate political institutions within compact scope; federal agencies must coordinate with compact governance bodies. Compacts must include provisions for preservation and transmission of Indigenous languages and cultural practices; the Republic provides federal education funding that supports Indigenous-language instruction.

## **§16.4** *Compact Administration and Continuity*

Each compact establishes a working mechanism for implementation and day-to-day administration in a form the parties agree. The Legat Consul designates a ministerial counterpart within the Legat Consul's office for each compact or treaty relationship recognized under this Article; this designation is published to the NRS. Disputes not resolved through the compact's working mechanism are referred to independent adjudication on terms the compact specifies. Constitutional questions arising from compact interpretation are appealed to the SC, which must rule within 90 days of petition; where the SC fails to rule within 90 days, the Nation's position is upheld by constitutional operation pending any subsequent ruling. The Executive Monitor audits the Republic's compliance with

its compact obligations annually and publishes findings to the NRS. Compact terms may be modified only by mutual agreement, negotiated by the Legat Consul and ratified by the Senate under §3.6. Compacts are reviewed on a schedule defined in their terms with a minimum review every 20 years; either party may request a review outside that schedule. A compact continues in force until the Nation files a valid status election under §16.7. For Territorial Integration, the compact ends upon ratification of the incorporation agreement under §15.6. For Full Sovereign Independence, the compact ends upon ratification of the independence treaty under §16.7, or upon the provisional framework taking effect under §16.7.a if no treaty is concluded.

#### **§16.5 *Federal Obligations and Emergency Rights***

The Republic holds affirmative obligations to compact territories: federal education funding, healthcare access, infrastructure investment, and emergency response. These obligations are enforceable by the Nation through the compact's dispute resolution mechanism. Any resident of compact territory who believes an Article I right has been violated may bring an Emergency Rights Writ directly to the SC, bypassing all lower courts and the compact's dispute resolution mechanism; the SC must rule within 7 days; where the SC fails to rule within 7 days, the Writ is granted and the alleged violation is treated as confirmed pending full SC review. Indigenous Nation membership and Republic citizenship are compatible and independent statuses; dual status is the constitutional default.

#### **§16.6 *Treaty Supremacy and Continuity***

All treaties entered into by predecessor governments with indigenous nations are binding obligations of the Republic. Treaty rights cannot be diminished by legislation — they must be honored, renegotiated with consent, or formally superseded by mutual agreement through the compact negotiation process under §16.2 and §16.4. Where a treaty's administration depends on a predecessor-government institution or mechanism with no Republic equivalent, the treaty's substantive rights and obligations continue in full regardless; the Legat Consul and the Nation must begin discussions to identify an analogous Republic institution or a negotiated substitute mechanism within the Republic's first year, and pending resolution, the ministerial counterpart designated under §16.4 administers the treaty's institutional functions on an interim basis. A treaty alone does not constitute a compact under this Article; the protections specific to compacts under §16.3 and §16.4 apply only where the Nation holds a compact, and a Nation whose relationship with the Republic rests solely on a predecessor treaty may petition for a compact under §16.2 at any time, on the same terms as a Nation with no prior treaty.

#### **§16.7 *Indigenous Nation Status Elections***

An indigenous nation recognized under this Article holds the constitutional right to initiate a status transition through its own democratic or traditional governance process. Three status options are available: (a) Continued Status — the Nation's existing compact or treaty relationship under this Article continues (default; no election required to remain); (b) Territorial Integration — election to pursue territorial incorporation through §15.6, entering as a Territory with the standard §15.2 Statehood pathway available; (c) Full Sovereign Independence —

the nation exists outside the Republic's constitutional framework as a fully independent sovereign nation, with the Republic obligated to negotiate a treaty within 24 months governing borders, trade, citizenship, and infrastructure — negotiations are conducted jointly by both executives through the Council of Ministers under §2.14, with the Legat Consul holding primary authority on border and defense terms under §2.1 and the Civic Consul holding primary authority on domestic implementation terms under §2.5; the Legislature ratifies the treaty by 2/3 of both chambers. As an independent sovereign, the Nation may subsequently seek an Associated Community compact with the Republic under Article XX. The Republic may not prefer, discourage, or offer inducements toward any option. The Republic must provide factual information about each status upon request.

#### **§16.7.a** *Status Election Process*

A status election under §16.7 requires: (1) a decision by the nation's own governance process, meeting the standards the nation itself defines for major governance decisions; and (2) publication of the election to the NRS within the period defined by statute following the governance decision. An election of Territorial Integration constitutes the principle step required by §15.6; once published, the Nation and the Legislature proceed directly to negotiation of the incorporation agreement under §15.6, which the Legislature ratifies by 2/3 of both chambers. A status election is irrevocable — a Nation that elects Territorial Integration or Full Sovereign Independence may not subsequently return to Article XVI status. Once a Nation has transitioned to Territory or State status, any further changes follow the standard constitutional processes applicable to that status under Articles XIII and XIX — including mandatory devolution under §15.3 if three consecutive Statehood Audits are failed. A Territory or State that formerly held Article XVI status has no special pathway back to it; the irrevocability of the status election is unconditional. Once a Nation has elected Full Sovereign Independence, any subsequent relationship with the Republic — including Associated Community status under Article XX — is pursued as an independent sovereign; Associated Community status requires full independence first and cannot be elected directly from Article XVI status. Where no treaty is concluded within 24 months following a status election of Full Sovereign Independence, either party may propose one 12-month extension by mutual agreement published to the NRS. Absent a concluded treaty or a mutually agreed extension, independence takes effect with a provisional framework: existing compact terms govern borders, trade, and infrastructure on a provisional basis until replaced by treaty; citizenship arrangements follow §5.1; the Legat Consul publishes the provisional framework to the NRS. Either party may petition the SC to resolve specific disputes within the provisional framework. At ratification, the Republic must formally notify all recognized indigenous nations of their rights under §16.7.

## Article XVII — Constitutional Amendments

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### *§17.1 Amendment Paths*

This Constitution may be amended through the parliamentary path or through citizen initiative. No executive signature is required; no executive veto applies. Every member's vote on any amendment is published to the NRS. A parliamentary amendment requires a 2/3 supermajority of the full seated membership of both chambers. The proposing body simultaneously specifies the ratification mechanism — either State Ratification (ratification by 2/3 of States within the period defined by statute) or Popular Ratification (a national popular referendum achieving 2/3 affirmative support with at least 55% citizen participation within 180 days). Citizen Initiative Amendment: A proposed constitutional amendment proceeds through the same two-phase petition process as §13.2, with Phase Two requiring signatures from 15% of eligible voters nationally rather than §13.2's 10%. Once the Phase Two threshold is met, the proposal proceeds directly to a national referendum, with no legislative or executive action required to place it on the ballot; the Elections Panel administers the referendum within 180 days of Phase Two threshold verification. Passage requires 70% of votes cast with a minimum 65% citizen participation; where the participation floor is not met the initiative fails and may not be resubmitted on the same or substantially similar grounds for five years. Citizen initiative amendments are subject to §17.3 consistency analysis by the JM, advisory only. Amendment of the following provisions requires Popular Ratification regardless of the amendment's origin: the Monitor selection mechanisms and independence protections (§9.2–§9.4), the Monitor information-only mandate and non-dependency principle (§9.1), the Monitor funding guarantee (§9.10), the NRS architecture and permanence requirements (§10.1), and the Elections Panel and NRS Panel independence (§11.1). These provisions may not be amended by State Ratification alone; a Citizen Initiative Amendment satisfies this requirement through its own referendum under this section without separately clearing the Popular Ratification threshold.

### *§17.2 No Executive Veto; Amendment Takes Effect*

Neither the Legat Consul nor the Civic Consul has any role in the constitutional amendment process. No signature required. No veto available. An amendment takes effect immediately upon LM certification (State Ratification), Elections Panel certification (Popular Ratification), or Elections Panel certification (Citizen Initiative Amendment), and NRS publication — no implementation delay, no executive discretion over timing.

### *§17.3 Amendment Consistency and Supremacy*

An amendment that is logically inconsistent with an existing provision must either explicitly repeal the inconsistent provision or the inconsistency is treated as void. The JM publishes a consistency analysis of any proposed amendment within 30 days of passage by both chambers for a parliamentary amendment, or within 30 days of Elections Panel Phase Two threshold verification for a citizen initiative amendment — advisory, but a permanent public record of what the amendment changes. If a ratified amendment's consistency with existing provisions is disputed, the SC resolves the dispute on expedited review on

petition of any person with standing; the SC may not refuse to apply an amendment that has met its procedural thresholds, except that no constitutional amendment may extinguish a right designated non-derogable under §1.19.b; any amendment purporting to do so is void to the extent of the extinguishment, and the SC must so rule on petition of any person with standing. Amendments take prospective effect from the date of ratification — they do not retroactively alter the constitutionality of acts that were constitutional when performed. Two amendments may be simultaneously in the ratification process; if both pass, both are law; where they conflict, the one ratified later prevails; where margins and timing are equal, the LM determines precedence from NRS records. A proposed amendment may be withdrawn at any point before ratification is certified.

#### **§17.4** *Supremacy of This Constitution*

This Constitution is the supreme law of the Federated Republic. All legislative acts, executive orders, treaties, administrative decisions, and government actions must be consistent with this Constitution. Any provision inconsistent with this Constitution is void to the extent of the inconsistency.

# Article XVIII — Federal Property and National Trust

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## §18.1 *The Use Doctrine*

Federal government holds no territorial sovereignty within any State or Territory. All federal property rights are functional use rights — operational control over a designated footprint for the duration of the stated function. Use rights do not constitute ownership, do not transfer sovereignty from the host State, and do not survive the termination of the function that justified them. Every use right must be registered on the NRS with precise geographic boundaries, authorized purpose, and termination conditions. There are no unregistered federal land claims; disputes over registration validity are resolved under §18.3.

## §18.2 *Seat of Government*

The Republic holds no territorial sovereignty at its Seat of Government. The Seat is hosted by a State or Territory selected through a competitive process defined by statute; any State or Territory may submit a bid, and the selected host must satisfy minimum requirements published to the NRS in advance of the selection. A State or Territory whose bid is rejected may challenge the selection before the SC on the ground that the selected bid did not satisfy the published requirements. The hosting arrangement grants the federal government Operational Use Rights over the designated footprint under §18.1; the host State or Territory retains full sovereignty outside that footprint. Federal control within the footprint is exclusive — the host may not tax federal operations or apply its own law to federal functions within the footprint. Residents of the federal footprint retain full Article I rights. The host selection must be reconsidered through a new competitive process no less often than every 20 years; the Legislature may not suspend or indefinitely extend this requirement by statute. Absent a qualifying new selection, the existing arrangement continues.

## §18.3 *Operational Use Rights*

When a federal function ends, the Operational Use Right terminates automatically; the federal government must publish notice of termination to the NRS within the period defined by statute, not to exceed 90 days. The land and all improvements revert to the host State automatically unless the federal government and host State negotiate a retention agreement within the statutory reversion window. Disputes over use right boundaries, termination, registration validity, or improvement valuation go to the SC on an expedited track; neither party may occupy or alter disputed land during pending resolution.

## §18.4 *The National Trust*

The National Trust holds all federal land not conveyed by statute to States, indigenous compact territories, or private parties. Land disposal requires statute — the executive cannot convey or encumber public land unilaterally. National Trust designation requires a 2/3 vote of both chambers with host State consent; removal from Trust designation requires the same 2/3 legislative threshold plus a national referendum administered by the Elections Panel within 180 days of the legislative vote, achieving 60% affirmative support with a minimum 50% citizen participation, and must comply with existing treaties and other



obligations established in this article. International conservation agreements require a 2/3 Senate vote to withdraw before the national removal process begins. Land designated National Trust carries an active stewardship obligation: the federal government must maintain ecological integrity and public accessibility; the EM monitors compliance annually cross-referenced with §1.18. States and indigenous nations may enter co-management agreements with the Civic Consul for National Trust lands within their borders or ancestral territories without transferring Trust ownership. The National Trust Administrator is a statutory independent officer whose independence is protected by statute; the enabling statute may not reduce the stewardship obligations or diminish the EM's annual monitoring authority.

#### **§18.5 *Federal Property in Territories***

Federal operational use rights in Territories follow the same framework as in States under §18.3 and §18.4. Where §18.4 requires host State legislative consent, that consent is not required for a Territory because Territories have no State legislature; instead, the Territory's representative body must publish a written position to the NRS within 60 days of the proposed use right registration; where no position is published within 60 days, registration may proceed; the LM's ongoing audit of territorial use rights encompasses verification of Territory publication compliance and publishes findings to the NRS.

# Article XIX — Transition and Ratification

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## **§19.1** *Activation Threshold and Ratification*

This constitution takes effect upon: (1) interim Elections Panel certification that the NVS is operational and meets §11.2; and (2) a national ratification vote achieving 60% affirmative support with at least 50% participation. Ratification creates binding constitutional obligations on all governmental actors from Day Zero. Where multiple sovereign nations simultaneously pool sovereignty through a treaty of union, transition provisions adapt as specified in the treaty of union, subject to the constitutional principles of this Article. Where the ratifying polity maintains existing institutions overlapping with constitutional mechanisms, the Legislature must by statute within two years of Phase 4 define their relationship; accommodation statutes may not reduce the legal standing of pre-existing governance structures below their pre-Phase 4 status. Where the Legislature fails to meet this deadline, the LM publishes a compliance finding to the NRS, and the LM's ongoing audit encompasses the unresolved relationship until the statute is passed.

## **§19.2** *Day Zero and Transition*

Day Zero is the date the ratification threshold is certified as achieved. Upon ratification, all laws conflicting with the Individual Sovereignty Floor are immediately null and void; all public assets transfer to the NRS; and the 24-month Transition Window begins. The Republic exists the moment the Elections Panel certifies the threshold. The constitution is implemented through a four-phase transition: Phase 0 — pre-ratification preparation, during which the interim Elections Panel is constituted, the NVS certified operational, and the joint Monitor panel formed; Phase 1 — Emergency Stabilization (Days 1-90), during which existing officials serve as caretakers and social state continuity is the priority; Phase 2 — Institutional Construction (Days 91-270), during which Statehood Audits are conducted, Monitors formally constituted, and the NVS fully deployed; Phase 3 — First Elections (Days 271-450), encompassing the first federal electoral period and inaugural executive and judicial appointments; Phase 4 — Full Constitutional Operation, beginning the day the first Legislature convenes and the first executives take the constitutional oath.

## **§19.3** *Caretaker Status*

All existing government officials serve as caretakers during the Transition Window — restricted to maintaining existing services only; no new permanent legislation. Legislation enacted in violation of this restriction is void; the joint Monitor panel's supervision includes monitoring for such violations and publishing findings to the NRS; any Inhabitant may challenge such legislation before a court of competent jurisdiction. Transition is supervised by a joint Monitor panel of one representative per Monitor; the panel dissolves automatically at the Transition Window's conclusion. During Phase 0, before Monitor Generals are constituted, the interim Elections Panel constitutes the panel from a pre-qualified pool established by the ratification convention; from Phase 2, each Monitor General appoints their representative to the panel for the remainder of the Transition Window. A Monitor General appointment supersedes any interim Elections Panel appointment for that Monitor's seat.

#### **§19.4 *Pre-Constitutional Classified Documents***

The Legislature must establish a Classification Review Commission within 90 days of Phase 4 activation. Where the Legislature fails to meet this deadline, the LM publishes a compliance finding to the NRS, and the LM's ongoing audit encompasses the unestablished Commission until it is created. The Commission applies constitutional classification criteria to predecessor classified material: legitimately classified material enters the standard classification framework from Day Zero; improperly classified material is immediately declassified and published to the NRS. Any Inhabitant may challenge a Commission determination before the SC.

#### **§19.5 *Pre-Existing Obligations***

The Republic assumes the public debt obligations of its predecessor government as a constitutional matter — it does not inherit a clean slate. Active military operations of the prior government continue under existing authorization until the §2.2 military authorization framework can apply; the Legat Consul, once inaugurated, must assess each active operation against the authorized purposes under §14.1 and either link it to legislative authorization within 14 days or begin orderly cessation; operations not so linked within 60 days cease unless the Legislature grants a one-time authorization. Social insurance programs — retirement pensions, disability benefits, health coverage — continue uninterrupted during the Transition Window. All benefit obligations to persons who served in military or national service under the prior government are inherited and honored; the Legislature must pass a Veterans and National Service Benefits Act within the first budget cycle following Phase 4. The Republic is the legal continuation of the prior government as a matter of international law; all international obligations, financial commitments, treaty relationships, and contractual obligations of the prior government are assumed as successor sovereign. Where an assumed international obligation conflicts with this constitution, the Republic is bound to renegotiate or formally supersede the obligation through the treaty process under §3.6; until that process is complete, the obligation is honored to the minimum extent required by international law without requiring any constitutional officer to violate Article I or any non-derogable right under §1.19.b. The immediate nullification of laws conflicting with the Individual Sovereignty Floor creates constitutional disputes; the Legislature must establish an interim Constitutional Claims Court within Phase 2, with jurisdiction over all Article I claims arising from Day Zero nullification.

#### **§19.6 *Transition Territories***

Territories or subdivisions meeting the Statehood Audit by Phase 2 end may petition to enter as State or Territory. Those failing the Baseline enter as Territory and may begin the Statehood Audit immediately. Any territory may choose Territory status by simple legislative vote regardless of whether it meets the Statehood Audit. Prior government states or territories may voluntarily subdivide during the Transition Window by vote of their existing legislative body; new subdivisions are treated as separate petitioning entities. Where a State fails the Phase 2 Statehood Audit, it enters as a Territory; its population retains all Article I rights and participates in first Assembly elections proportionally. All prior government territories that had not achieved statehood by Day Zero enter as Territories from Phase 4 activation without undergoing Phase 2 Statehood

Audits; any capital district or special administrative region is assigned Territory status and follows the §15.2 path.

#### **§19.7 *Transition Candidate Registers***

The joint Monitor panel assembles the initial Candidate Registers for all constitutionally established positions before Phase 3 elections can occur. The panel performs the register-assembly and qualification review function that permanent Monitors will assume after Phase 4; registers assembled by the panel carry full constitutional validity and the Legislature ratifies and continues them through the first budget cycle after Phase 4. The panel performs interim MA fiscal certification functions from Phase 4 activation until the first MA Director takes office; the first Civic Consul must nominate MA board members within 90 days of Phase 4 activation. Where the Civic Consul fails to meet this deadline, the LM publishes a compliance finding to the NRS, and the LM's ongoing audit encompasses the unfilled nomination until it is made.

#### **§19.8 *Transitional Accountability Mechanism***

Where a ratifying polity's predecessor government has documented constitutional violations, the Legislature may by statute passed by 2/3 of both chambers establish a Transitional Accountability Mechanism. Such a mechanism must be time-limited — not to exceed ten years in duration — non-criminal, and consistent with Article I in all its operations. The establishing statute defines the scope, procedures, and duration; no amendment may expand the scope without the same 2/3 majority; the NRS record is permanent. No new Mechanism may be established within ten years of the sunset of a prior one.

#### **§19.9 *Required Statutory Agency Establishment***

Where this Constitution assigns a specific function to a statutory independent agency under §3.9, the Legislature must establish that agency within the following timeframes from Phase 4 activation: the civic proficiency assessment administrator under §5.1, within 180 days; the Census Bureau under §3.2, within 18 months; the Monetary Authority under §12.1, within 180 days. Where the Legislature fails to meet a deadline, §3.9 applies: the LM publishes a compliance finding to the NRS, and the responsible Monitor's ongoing audit encompasses the unfilled mandate until the agency is established. The LM publishes a compliance finding to the NRS when any establishment deadline is missed and again when the agency becomes operational. The Legislature may not permanently delegate a constitutionally required statutory function to an Monitor in lieu of establishing the required agency. The Legislature must by statute establish the transition from any predecessor voting infrastructure to the constitutionally required NVS, ensuring no gap in democratic participation.

## Article XX — Associated Communities

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### **§20.1** *Associated Community Status*

Exclusively for sovereign entities — not a form of State or Territory status, not transitional, not incorporation. Available to sovereign nations — those that have achieved full sovereignty through a status election under §16.7 or through the constitutional amendment process — and to independent nations outside the Republic seeking a defined relationship. Indigenous nations holding rights under Article XVI may not substitute an Article XX compact for their Article XVI compact relationship without first completing a status election under §16.7.a.

### **§20.2** *Compact Terms and Equal Sovereignty*

Equal parties; neither constitutionally superior. Observing delegates attend Assembly and Senate proceedings relevant to the compact — speaking rights, no vote, no quorum or threshold effect. The Republic may not impose its constitutional governance architecture on an Associated Community as a condition of the compact relationship. Minimum democratic legitimacy requirements applicable to States do not apply to Associated Communities.

### **§20.3** *Compact Conditions and Compliance*

No compact may be entered or ratified with any entity whose governance practices include, authorize, or systematically permit violations of any of the non-derogable rights established in §1.19.b, committed against any person within its jurisdiction. The JM conducts annual compliance reviews and publishes findings to the NRS. Where the JM finds systematic violations of §1.19.b rights or any party challenges a compact on those grounds, the compact is suspended pending SC review; the SC must rule within 90 days of suspension, and where the SC fails to rule within that period, the suspension lifts and the compact resumes pending any subsequent ruling. The SC may terminate the compact on confirmed violations without remediation within the period the Legislature defines by statute. Economic value of the compact relationship is not a factor in JM assessment or Supreme Court review. Where an Associated Community's territory includes indigenous nations with pre-existing governance relationships, the compact must address those relationships and may not require the Associated Community to eliminate or diminish pre-existing indigenous governance arrangements within its territory. Compact suspension means the Associated Community's observer delegate participation rights are suspended for the duration of the review; all other compact obligations of both parties continue in effect pending the SC's determination.

### **§20.4** *Sovereign Mobility*

The Associated Community may at any time, by its own democratic or traditional governance process, elect to terminate the compact and proceed as a fully independent sovereign nation. No Republic consent is required for compact termination, and the Republic may not impose conditions on or penalties for the decision to terminate. Compact termination takes effect on a date not less than 12 months from the date the Associated Community publishes written notice of termination to the NRS, to allow orderly transition of any services the compact provides. Where the Associated Community's highest governance authority

issues a formal ruling within the 12-month period that the termination decision was invalid under the community's own governance law, the community may withdraw the termination notice; the Republic acknowledges the withdrawal and the compact continues.

#### **§20.5 *Reciprocal Obligations and Review***

The compact must specify with particularity the reciprocal obligations of both parties and the review mechanism. The Associated Community holds obligations to the Republic as well as rights from it. Review must be scheduled at regular intervals defined in the compact; either party may request a review outside the schedule by providing written notice to the NRS.

#### **§20.6 *Compact Ratification***

A compact with an Associated Community requires Senate ratification by 2/3 of full seated membership, consistent with the treaty ratification threshold under §3.6. Both executives must transmit the proposed compact to the Senate simultaneously with a joint assessment of its consistency with this Article. Under §9.1, either chamber may request a JM assessment of compact compliance before proceeding to ratification. A ratified compact takes effect on the date specified in its terms and is registered to the NRS as a public record. Where the executives cannot agree on a joint assessment, each may publish a separate assessment to the NRS; the Senate receives both and may proceed to ratification on that basis.

#### **§20.7 *Compact Continuity***

Compacts in force at the time of any government transition continue without interruption and bind successive governments of the Republic. No election result, change in the Republic's internal constitutional arrangements, or government transition affects the validity or standing of a compact in force. A new government may initiate renegotiation of a compact through the process the compact specifies but may not unilaterally suspend, modify, or withdraw from a compact pending renegotiation.